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A WEEKLY JOURNAL.

CONDUCTED BY CHARLES DICKENS.

ISSUE NO. 5.

SATURDAY, APRIL 27, 1850

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N^o. 5.] SATURDAY, APRIL 27, 1850. [PRICE 2*d*.

PET PRISONERS

The system of separate confinement first experimented on in England at the model prison, Pentonville, London, and now spreading through the country, appears to us to require a little calm consideration and reflection on the part of the public. We purpose, in this paper, to suggest what we consider some grave objections to this System.

We shall do this temperately, and without considering it necessary to regard every one from whom we differ, as a scoundrel, actuated by base motives, to whom the most unprincipled conduct may be recklessly attributed. Our faith in most questions where the good men are represented to be all *pro*, and the bad men to be all *con*, is very small. There is a hot class of riders of hobby-horses in the field, in this century, who think they do nothing unless they make a steeple-chase of their object; throw a vast quantity of mud about, and spurn every sort of decent restraint and reasonable consideration under their horses' heels. This question has not escaped such championship. It has its steeple-chase riders, who hold the dangerous principle that the end justifies any means, and to whom no means, truth and fair-dealing usually excepted, come amiss.

Considering the separate system of imprisonment, here, solely in reference to England, we discard, for the purpose of this discussion, the objection founded on its extreme severity, which would immediately arise if we were considering it with any reference to the State of Pennsylvania in America. For whereas in that State it may be inflicted for a dozen years, the idea is quite abandoned at home of extending it usually, beyond a dozen months, or in any case beyond eighteen months. Besides which, the school and the chapel afford periods of comparative relief here, which are not afforded in America.

Though it has been represented by the steeple-chase riders as a most enormous heresy to contemplate the possibility of any prisoner going mad or idiotic, under the prolonged effects of separate confinement; and although any one who should have the temerity to maintain such a doubt in Pennsylvania, would have a chance of becoming a profane St. Stephen; Lord Grey, in his very last speech in the House of Lords on this subject, made in the present session of Parliament, in praise of this separate system, said of it: ‘Wherever it has been fairly tried, one of its great defects has been discovered to be this,—that it cannot be continued for a sufficient length of time without danger to the individual, and that human nature cannot bear it beyond a limited period. The evidence of medical authorities proves beyond dispute that, if it is protracted beyond twelve months, the health of the convict, mental and physical, would require the most close and vigilant superintendence. Eighteen months is stated to be the *maximum* time for the continuance of its infliction, and, as a general rule, it is advised that it never be continued for more than twelve months.’ This being conceded, and it being clear that the prisoner’s mind, and all the apprehensions weighing upon it, must be influenced from the first hour of his imprisonment by the greater or less extent of its duration in perspective before him, we are content to regard the system as dissociated in England from the American objection of too great severity.

We shall consider it, first in the relation of the extraordinary contrast it presents, in a country circumstanced as England is, between the physical condition of the convict in prison, and that of the hard-working man outside, or the pauper outside. We shall then enquire, and endeavour to lay before our readers some means of judging, whether its proved or probable efficiency in producing a real, trustworthy, practically repentant state of mind, is such as to justify the presentation of that extraordinary contrast. If, in the end, we indicate the conclusion that the associated silent system is less objectionable, it is not because we consider it in the abstract a good secondary punishment, but because it is a severe one, capable of judicious administration, much less expensive, not presenting the objectionable contrast so strongly, and not calculated to pet and pamper the mind of the prisoner and swell his sense of his own importance. We are not acquainted with any system of secondary punishment that we think reformatory, except the mark system of Captain Macconnochie, formerly governor of Norfolk Island, which proceeds upon the principle of obliging the convict to some

exercise of self-denial and resolution in every act of his prison life, and which would condemn him to a sentence of so much labour and good conduct instead of so much time. There are details in Captain Macconnochie's scheme on which we have our doubts (rigid silence we consider indispensable); but, in the main, we regard it as embodying sound and wise principles. We infer from the writings of Archbishop Whateley, that those principles have presented themselves to his profound and acute mind in a similar light.

We will first contrast the dietary of The Model Prison at Pentonville, with the dietary of what we take to be the nearest workhouse, namely, that of Saint Pancras. In the prison, every man receives twenty-eight ounces of meat weekly. In the workhouse, every able-bodied adult receives eighteen. In the prison, every man receives one hundred and forty ounces of bread weekly. In the workhouse, every able-bodied adult receives ninety-six. In the prison, every man receives one hundred and twelve ounces of potatoes weekly. In the workhouse, every able-bodied adult receives thirty-six. In the prison, every man receives five pints and a quarter of liquid cocoa weekly, (made of flaked cocoa or cocoa-nibs), with fourteen ounces of milk and forty-two drams of molasses; also seven pints of gruel weekly, sweetened with forty-two drams of molasses. In the workhouse, every able-bodied adult receives fourteen pints and a half of milk-porridge weekly, and no cocoa, and no gruel. In the prison, every man receives three pints and a half of soup weekly. In the workhouse, every able-bodied adult male receives four pints and a half, and a pint of Irish stew. This, with seven pints of table-beer weekly, and six ounces of cheese, is all the man in the workhouse has to set off against the immensely superior advantages of the prisoner in all the other respects we have stated. His lodging is very inferior to the prisoner's, the costly nature of whose accommodation we shall presently show.

Let us reflect upon this contrast in another aspect. We beg the reader to glance once more at The Model Prison dietary, and consider its frightful disproportion to the dietary of the free labourer in any of the rural parts of England. What shall we take his wages at? Will twelve shillings a week do? It cannot be called a low average, at all events. Twelve shillings a week make thirty-one pounds four a year. The cost, in 1848, for the victualling and management of every prisoner in the Model Prison was within a little of thirty-six pounds. Consequently, that free labourer, with young children to

support, with cottage-rent to pay, and clothes to buy, and no advantage of purchasing his food in large amounts by contract, has, for the whole subsistence of himself and family, between four and five pounds a year *less* than the cost of feeding and overlooking one man in the Model Prison. Surely to his enlightened mind, and sometimes low morality, this must be an extraordinary good reason for keeping out of it!

But we will not confine ourselves to the contrast between the labourer's scanty fare and the prisoner's 'flaked cocoa or cocoa-nibs,' and daily dinner of soup, meat, and potatoes. We will rise a little higher in the scale. Let us see what advertisers in the *Times* newspaper can board the middle classes at, and get a profit out of, too.

A LADY, residing in a cottage, with a large garden, in a pleasant and healthful locality, would be happy to receive one or two LADIES to BOARD with her. Two ladies occupying the same apartment may be accommodated for 12s. a week each. The cottage is within a quarter of an hour's walk of a good market town, 10 minutes' of a South-Western Railway Station, and an hour's distance from town.

These two ladies could not be so cheaply boarded in the Model Prison.

BOARD and RESIDENCE, at £70 per annum, for a married couple, or in proportion for a single gentleman or lady, with a respectable family. Rooms large and airy, in an eligible dwelling, at Islington, about 20 minutes' walk from the Bank. Dinner hour six o'clock. There are one or two vacancies to complete a small, cheerful, and agreeable circle.

Still cheaper than the Model Prison!

BOARD and RESIDENCE.—A lady, keeping a select school, in a town, about 30 miles from London, would be happy to meet with a LADY to BOARD and RESIDE with her. She would have her own bed-room and a

sitting-room. Any lady wishing for accomplishments would find this desirable. Terms £30 per annum. References will be expected and given.

Again, some six pounds a year less than the Model Prison! And if we were to pursue the contrast through the newspaper file for a month, or through the advertising pages of two or three numbers of Bradshaw's Railway Guide, we might probably fill the present number of this publication with similar examples, many of them including a decent education into the bargain.

This Model Prison had cost at the close of 1847, under the heads of 'building' and 'repairs' alone, the insignificant sum of ninety-three thousand pounds—within seven thousand pounds of the amount of the last Government grant for the Education of the whole people, and enough to pay for the emigration to Australia of four thousand, six hundred and fifty poor persons at twenty pounds per head. Upon the work done by five hundred prisoners in the Model Prison, in the year 1848, (we collate these figures from the Reports, and from Mr. Hepworth Dixon's useful work on the London Prisons,) there was no profit, but an actual loss of upwards of eight hundred pounds. The cost of instruction, and the time occupied in instruction, when the labour is necessarily unskilled and unproductive, may be pleaded in explanation of this astonishing fact. We are ready to allow all due weight to such considerations, but we put it to our readers whether the whole system is right or wrong; whether the money ought or ought not rather to be spent in instructing the unskilled and neglected outside the prison walls. It will be urged that it is expended in preparing the convict for the exile to which he is doomed. We submit to our readers, who are the jury in this case, that all this should be done outside the prison, first; that the first persons to be prepared for emigration are the miserable children who are consigned to the tender mercies of a DROUET, or who disgrace our streets; and that in this beginning at the wrong end, a spectacle of monstrous inconsistency is presented, shocking to the mind. Where is our Model House of Youthful Industry, where is our Model Ragged School, costing for building and repairs, from ninety to a hundred thousand pounds, and for its annual maintenance upwards of twenty thousand pounds a year? Would it be a Christian act to build that, first? To breed our skilful labour there? To take the hewers of wood and drawers of water in a strange country from the

convict ranks, until those men by earnest working, zeal, and perseverance, proved themselves, and raised themselves? Here are two sets of people in a densely populated land, always in the balance before the general eye. Is Crime for ever to carry it against Poverty, and to have a manifest advantage? There are the scales before all men. Whirlwinds of dust scattered in mens' eyes—and there is plenty flying about—cannot blind them to the real state of the balance.

We now come to enquire into the condition of mind produced by the seclusion (limited in duration as Lord Grey limits it) which is purchased at this great cost in money, and this greater cost in stupendous injustice. That it is a consummation much to be desired, that a respectable man, lapsing into crime, should expiate his offence without incurring the liability of being afterwards recognised by hardened offenders who were his fellow-prisoners, we most readily admit. But, that this object, howsoever desirable and benevolent, is in itself sufficient to outweigh such objections as we have set forth, we cannot for a moment concede. Nor have we any sufficient guarantee that even this solitary point is gained. Under how many apparently inseparable difficulties, men immured in solitary cells, will by some means obtain a knowledge of other men immured in other solitary cells, most of us know from all the accounts and anecdotes we have read of secret prisons and secret prisoners from our school-time upwards. That there is a fascination in the desire to know something of the hidden presence beyond the blank wall of the cell; that the listening ear is often laid against that wall; that there is an overpowering temptation to respond to the muffled knock, or any other signal which sharpened ingenuity pondering day after day on one idea can devise: is in that constitution of human nature which impels mankind to communication with one another, and makes solitude a false condition against which nature strives. That such communication within the Model Prison, is not only probable, but indisputably proved to be possible by its actual discovery, we have no hesitation in stating as a fact. Some pains have been taken to hush the matter, but the truth is, that when the Prisoners at Pentonville ceased to be selected Prisoners, especially picked out and chosen for the purposes of that experiment, an extensive conspiracy was found out among them, involving, it is needless to say, extensive communication. Small pieces of paper with writing upon them, had been crushed into balls, and shot into the apertures of cell doors, by prisoners passing along the passages; false responses had

been made during Divine Service in the chapel, in which responses they addressed one another; and armed men were secretly dispersed by the Governor in various parts of the building, to prevent the general rising, which was anticipated as the consequence of this plot. Undiscovered communication, under this system, we assume to be frequent.

The state of mind into which a man is brought who is the lonely inhabitant of his own small world, and who is only visited by certain regular visitors, all addressing themselves to him individually and personally, as the object of their particular solicitude—we believe in most cases to have very little promise in it, and very little of solid foundation. A strange absorbing selfishness—a spiritual egotism and vanity, real or assumed—is the first result. It is most remarkable to observe, in the cases of murderers who become this kind of object of interest, when they are at last consigned to the condemned cell, how the rule is (of course there are exceptions,) that the murdered person disappears from the stage of their thoughts, except as a part of their own important story; and how they occupy the whole scene. *I did this, I feel that, I confide in the mercy of Heaven being extended to me; this is the autograph of me, the unfortunate and unhappy; in my childhood I was so and so; in my youth I did such a thing, to which I attribute my downfall—not this thing of basely and barbarously defacing the image of my Creator, and sending an immortal soul into eternity without a moment's warning, but something else of a venial kind that many unpunished people do. I don't want the forgiveness of this foully murdered person's bereaved wife, husband, brother, sister, child, friend; I don't ask for it, I don't care for it. I make no enquiry of the clergyman concerning the salvation of that murdered person's soul; mine is the matter; and I am almost happy that I came here, as to the gate of Paradise. 'I never liked him,' said the repentant Mr. Manning, false of heart to the last, calling a crowbar by a milder name, to lessen the cowardly horror of it, 'and I beat in his skull with the ripping chisel.' I am going to bliss, exclaims the same authority, in effect. Where my victim went to, is not my business at all. Now, God forbid that we, unworthily believing in the Redeemer, should shut out hope, or even humble trustfulness, from any criminal at that dread pass; but, it is not in us to call this state of mind repentance.*

The present question is with a state of mind analogous to this (as we conceive) but with a far stronger tendency to hypocrisy; the dread of death

not being present, and there being every possible inducement, either to feign contrition, or to set up an unreliable semblance of it. If I, John Styles, the prisoner, don't do my work, and outwardly conform to the rules of the prison, I am a mere fool. There is nothing here to tempt me to do anything else, and everything to tempt me to do that. The capital dietary (and every meal is a great event in this lonely life) depends upon it; the alternative is a pound of bread a day. I should be weary of myself without occupation. I should be much more dull if I didn't hold these dialogues with the gentlemen who are so anxious about me. I shouldn't be half the object of interest I am, if I didn't make the professions I do. Therefore, I John Styles go in for what is popular here, and I may mean it, or I may not.

There will always, under any decent system, be certain prisoners, betrayed into crime by a variety of circumstances, who will do well in exile, and offend against the laws no more. Upon this class, we think the Associated Silent System would have quite as good an influence as this expensive and anomalous one; and we cannot accept them as evidence of the efficiency of separate confinement. Assuming John Styles to mean what he professes, for the time being, we desire to track the workings of his mind, and to try to test the value of his professions. Where shall we find an account of John Styles, proceeding from no objector to this system, but from a staunch supporter of it? We will take it from a work called 'Prison Discipline, and the advantages of the separate system of imprisonment,' written by the Reverend Mr. Field, chaplain of the new County Gaol at Reading; pointing out to Mr. Field, in passing, that the question is not justly, as he would sometimes make it, a question between this system and the profligate abuses and customs of the old unreformed gaols, but between it and the improved gaols of this time, which are not constructed on his favourite principles.^[1]

¹. As Mr. Field condescends to quote some vapouring about the account given by Mr. Charles Dickens in his 'American Notes,' of the Solitary Prison at Philadelphia, he may perhaps really wish for some few words of information on the subject. For this purpose, Mr. Charles Dickens has referred to the entry in his Diary, made at the close of that day.

He left his hotel for the Prison at twelve o'clock, being waited on, by appointment, by the gentleman who showed it to him; and he returned between seven and eight at night; dining in the prison in the course of that time; which, according to his calculation, in despite of the Philadelphia Newspaper, rather exceeds two hours. He found the Prison admirably conducted, extremely clean, and the system administered in a most intelligent, kind, orderly, tender, and careful manner. He did not consider (nor should he, if he were to visit Pentonville to-morrow) that the book in which visitors were expected to record their observation of the place, was

intended for the insertion of criticisms on the system, but for honest testimony to the manner of its administration; and to that, he bore, as an impartial visitor, the highest testimony in his power. In returning thanks for his health being drunk, at the dinner within the walls, he said that what he had seen that day was running in his mind; that he could not help reflecting on it; and that it was an awful punishment. If the American officer who rode back with him afterwards should ever see these words, he will perhaps recall his conversation with Mr. Dickens on the road, as to Mr. Dickens having said so, very plainly and strongly. In reference to the ridiculous assertion that Mr. Dickens in his book termed a woman 'quite beautiful' who was a Negress, he positively believes that he was shown no Negress in the Prison, but one who was nursing a woman much diseased, and to whom no reference whatever is made in his published account. In describing three young women, 'all convicted at the same time of a conspiracy,' he may, *possibly*, among many cases, have substituted in his memory for one of them whom he did not see, some other prisoner, confined for some other crime, whom he did see; but he has not the least doubt of having been guilty of the (American) enormity of detecting beauty in a pensive quadroon or mulatto girl, or of having seen exactly what he describes; and he remembers the girl more particularly described in this connexion, perfectly. Can Mr. Field really suppose that Mr. Dickens had any interest or purpose in misrepresenting the system, or that if he could be guilty of such unworthy conduct, or desire to do it anything but justice, he would have volunteered the narrative of a man's having, of his own choice, undergone it for two years?

We will not notice the objection of Mr. Field (who strengthens the truth of Burns to nature, by the testimony of Mr. Pitt!) to the discussion of such a topic as the present in a work of 'mere amusement;' though, we had thought we remembered in that book a word or two about slavery, which, although a very amusing, can scarcely be considered an unmitigatedly comic theme. We are quite content to believe, without seeking to make a convert of the Reverend Mr. Field, that no work need be one of 'mere amusement;' and that some works to which he would apply that designation have done a little good in advancing principles to which, we hope, and will believe, for the credit of his Christian office, he is not indifferent.

Now, here is John Styles, twenty years of age, in prison for a felony. He has been there five months, and he writes to his sister, 'Don't fret my dear sister, about my being here. I cannot help fretting when I think about my usage to my father and mother: when I think about it, it makes me quite ill. I hope God will forgive me; I pray for it night and day from my heart. Instead of fretting about imprisonment, I ought to thank God for it, for before I came here, I was living quite a careless life; neither was God in all my thoughts; all I thought about was ways that led me towards destruction. Give my respects to my wretched companions, and I hope they will alter their wicked course, for they don't know for a day nor an hour but what they may be cut off. I have seen my folly, and I hope they may see their folly; but I shouldn't if I had not been in trouble. It is good for me that I have been in trouble. Go to church, my sister, every Sunday, and don't give your mind to going to playhouses and theatres, for that is no good to you. There are a great many temptations.'

Observe! John Styles, who has committed the felony has been ‘living quite a careless life.’ That is his worst opinion of it, whereas his companions who did not commit the felony are ‘wretched companions.’ John saw *his* ‘folly,’ and sees *their* ‘wicked course.’ It is playhouses and theatres which many unfelonious people go to, that prey upon John’s mind—not felony. John is shut up in that pulpit to lecture his companions and his sister, about the wickedness of the unfelonious world. Always supposing him to be sincere, is there no exaggeration of himself in this? Go to church where I can go, and don’t go to theatres where I can’t! Is there any tinge of the fox and the grapes in it? Is this the kind of penitence that will wear outside! Put the case that he had written, of his own mind, ‘My dear sister, I feel that I have disgraced you and all who should be dear to me, and if it please God that I live to be free, I will try hard to repair that, and to be a credit to you. My dear sister, when I committed this felony, I stole something—and these pining five months have not put it back—and I will work my fingers to the bone to make restitution, and oh! my dear sister, seek out my late companions, and tell Tom Jones, that poor boy, who was younger and littler than me, that I am grieved I ever led him so wrong, and I am suffering for it now!’ Would that be better? Would it be more like solid truth?

But no. This is not the pattern penitence. There would seem to be a pattern penitence, of a particular form, shape, limits, and dimensions, like the cells. While Mr. Field is correcting his proof-sheets for the press, another letter is brought to him, and in that letter too, that man, also a felon, speaks of his ‘past folly,’ and lectures his mother about labouring under ‘strong delusions of the devil.’ Does this overweening readiness to lecture other people, suggest the suspicion of any parrot-like imitation of Mr. Field, who lectures him, and any presumptuous confounding of their relative positions?

We venture altogether to protest against the citation, in support of this system, of assumed repentance which has stood no test or trial in the working world. We consider that it proves nothing, and is worth nothing, except as a discouraging sign of that spiritual egotism and presumption of which we have already spoken. It is not peculiar to the separate system at Reading; Miss Martineau, who was on the whole decidedly favourable to the separate prison at Philadelphia, observed it there. ‘The cases I became acquainted with,’ says she, ‘were not all hopeful. Some of the convicts were

so stupid as not to be relied upon, more or less. Others canted so detestably, and were (always in connexion with their cant) so certain that they should never sin more, that I have every expectation that they will find themselves in prison again some day. One fellow, a sailor, notorious for having taken more lives than probably any man in the United States, was quite confident that he should be perfectly virtuous henceforth. He should never touch anything stronger than tea, or lift his hand against money or life. I told him I thought he could not be sure of all this till he was within sight of money and the smell of strong liquors; and that he was more confident than I should like to be. He shook his shock of red hair at me, and glared with his one ferocious eye, as he said he knew all about it. He had been the worst of men, and Christ had had mercy on his poor soul.' (Observe again, as in the general case we have put, that he is not at all troubled about the souls of the people whom he had killed.)

Let us submit to our readers another instance from Mr. Field, of the wholesome state of mind produced by the separate system. 'The 25th of March, in the last year, was the day appointed for a general fast, on account of the threatened famine. The following note is in my journal of that day. "During the evening I visited many prisoners, and found with much satisfaction that a large proportion of them had observed the day in a manner becoming their own situation, and the purpose for which it had been set apart. I think it right to record the following remarkable proof of the effect of discipline. * * * * * They were all supplied with their usual rations. I went first this evening to the cells of the prisoners recently committed for trial (Ward A. 1.), and amongst these (upwards of twenty) I found that but three had abstained from any portion of their food. I then visited twenty-one convicted prisoners who had spent some considerable time in the gaol (Ward C. 1.), and amongst them I found that some had altogether abstained from food, and of the whole number two-thirds had partially abstained.'" We will take it for granted that this was not because they had more than they could eat, though we know that with such a dietary even that sometimes happens, especially in the case of persons long confined. 'The remark of one prisoner whom I questioned concerning his abstinence was, I believe, sincere, and was very pleasing. "Sir, I have not felt able to eat to-day, whilst I have thought of those poor starving people; but I hope that I have prayed a good deal that God will give *them* something to eat.'"'

If this were not pattern penitence, and the thought of those poor starving people had honestly originated with that man, and were really on his mind, we want to know why he was not uneasy, every day, in the contemplation of his soup, meat, bread, potatoes, cocoa-nibs, milk, molasses, and gruel, and its contrast to the fare of 'those poor starving people' who, in some form or other, were taxed to pay for it?

We do not deem it necessary to comment on the authorities quoted by Mr. Field to show what a fine thing the separate system is, for the health of the body; how it never affects the mind except for good; how it is the true preventive of pulmonary disease; and so on. The deduction we must draw from such things is, that Providence was quite mistaken in making us gregarious, and that we had better all shut ourselves up directly. Neither will we refer to that 'talented criminal,' Dr. Dodd, whose exceedingly indifferent verses applied to a system now extinct, in reference to our penitentiaries for convicted prisoners. Neither, after what we have quoted from Lord Grey, need we refer to the likewise quoted report of the American authorities, who are perfectly sure that no extent of confinement in the Philadelphia prison has ever affected the intellectual powers of any prisoner. Mr. Croker cogently observes, in the *Good-Natured Man*, that either his hat must be on his head, or it must be off. By a parity of reasoning, we conclude that both Lord Grey and the American authorities cannot possibly be right—unless indeed the notoriously settled habits of the American people, and the absence of any approach to restlessness in the national character, render them unusually good subjects for protracted seclusion, and an exception from the rest of mankind.

In using the term 'pattern penitence' we beg it to be understood that we do not apply it to Mr. Field, or to any other chaplain, but to the system; which appears to us to make these doubtful converts all alike. Although Mr. Field has not shown any remarkable courtesy in the instance we have set forth in a note, it is our wish to show all courtesy to him, and to his office, and to his sincerity in the discharge of its duties. In our desire to represent him with fairness and impartiality, we will not take leave of him without the following quotation from his book:

'Scarcely sufficient time has yet expired since the present system was introduced, for me to report much concerning discharged criminals. Out of a class so degraded—the very dregs of the community—it can be no

wonder that some, of whose improvement I cherished the hope, should have relapsed. Disappointed in a few cases I have been, yet by no means discouraged, since I can with pleasure refer to many whose conduct is affording proof of reformation. Gratifying indeed have been some accounts received from liberated offenders themselves, as well as from clergymen of parishes to which they have returned. I have also myself visited the homes of some of our former prisoners, and have been cheered by the testimony given, and the evident signs of improved character which I have there observed. Although I do not venture at present to describe the particular cases of prisoners, concerning whose reformation I feel much confidence, because, as I have stated, the time of trial has hitherto been short; yet I can with pleasure refer to some public documents which prove the happy effects of similar discipline in other establishments.'

It should also be stated that the Reverend Mr. Kingsmill, the chaplain of the Model Prison at Pentonville, in his calm and intelligent report made to the Commissioners on the first of February, 1849, expresses his belief 'that the effects produced here upon the character of prisoners, have been encouraging in a high degree.'

But, we entreat our readers once again to look at that Model Prison dietary (which is essential to the system, though the system is so very healthy of itself); to remember the other enormous expenses of the establishment; to consider the circumstances of this old country, with the inevitable anomalies and contrasts it must present; and to decide, on temperate reflection, whether there are any sufficient reasons for adding this monstrous contrast to the rest. Let us impress upon our readers that the existing question is, not between this system and the old abuses of the old profligate Gaols (with which, thank Heaven, we have nothing to do), but between this system and the associated silent system, where the dietary is much lower, where the annual cost of provision, management, repairs, clothing, &c., does not exceed, on a liberal average, £25 for each prisoner; where many prisoners are, and every prisoner would be (if due accommodation were provided in some over-crowded prisons), locked up alone, for twelve hours out of every twenty-four, and where, while preserved from contamination, he is still one of a society of men, and not an isolated being, filling his whole sphere of view with a diseased dilation of himself. We hear that the associated silent system is objectionable, because of the number of punishments it involves for breaches of the prison

discipline; but how can we, in the same breath, be told that the resolutions of prisoners for the misty future are to be trusted, and that, on the least temptation, they are so little to be relied on, as to the solid present? How can I set the pattern penitence against the career that preceded it, when I am told that if I put that man with other men, and lay a solemn charge upon him not to address them by word or sign, there are such and such great chances that he will want the resolution to obey?

Remember that this separate system, though commended in the English Parliament and spreading in England, has not spread in America, despite of all the steeple-chase riders in the United States. Remember that it has never reached the State most distinguished for its learning, for its moderation, for its remarkable men of European reputation, for the excellence of its public Institutions. Let it be tried here, on a limited scale, if you will, with fair representatives of all classes of prisoners: let Captain Macconnochie's system be tried: let anything with a ray of hope in it be tried: but, only as a part of some general system for raising up the prostrate portion of the people of this country, and not as an exhibition of such astonishing consideration for crime, in comparison with want and work. Any prison built, at a great expenditure, for this system, is comparatively useless for any other; and the ratepayers will do well to think of this, before they take it for granted that it is a proved boon to the country which will be enduring.

Under the separate system, the prisoners work at trades. Under the associated silent system, the Magistrates of Middlesex have almost abolished the treadmill. Is it no part of the legitimate consideration of this important point of work, to discover what kind of work the people always filtering through the gaols of large towns—the pickpocket, the sturdy vagrant, the habitual drunkard, and the begging-letter impostor—like least, and to give them that work to do in preference to any other? It is out of fashion with the steeple-chase riders we know; but we would have, for all such characters, a kind of work in gaols, badged and degraded as belonging to gaols only, and never done elsewhere. And we must avow that, in a country circumstanced as England is, with respect to labour and labourers, we have strong doubts of the propriety of bringing the results of prison labour into the over-stocked market. On this subject some public remonstrances have recently been made by tradesmen; and we cannot shut our eyes to the fact that they are well-founded.

A TALE OF THE GOOD OLD TIMES.

An alderman of the ancient borough of Beetlebury, and churchwarden of the parish of St. Wulfstan's in the said borough, Mr. Blenkinsop might have been called, in the language of the sixteenth century, a man of worship. This title would probably have pleased him very much, it being an obsolete one, and he entertaining an extraordinary regard for all things obsolete, or thoroughly deserving to be so. He looked up with profound veneration to the griffins which formed the water-spouts of St. Wulfstan's Church, and he almost worshipped an old boot under the name of a black jack, which on the affidavit of a forsworn broker, he had bought for a drinking vessel of the sixteenth century. Mr. Blenkinsop even more admired the wisdom of our ancestors than he did their furniture and fashions. He believed that none of their statutes and ordinances could possibly be improved on, and in this persuasion had petitioned Parliament against every just or merciful change, which, since he had arrived at man's estate, had been made in the laws. He had successively opposed all the Beetlebury improvements, gas, waterworks, infant schools, mechanics' institute, and library. He had been active in an agitation against any measure for the improvement of the public health, and, being a strong advocate of intramural interment, was instrumental in defeating an attempt to establish a pretty cemetery outside Beetlebury. He had successfully resisted a project for removing the pig-market from the middle of the High Street. Through his influence the shambles, which were corporation property, had been allowed to remain where they were; namely, close to the Town Hall, and immediately under his own and his brethren's noses. In short, he had regularly, consistently, and nobly done his best to frustrate every scheme that was proposed for the comfort and advantage of his fellow creatures. For this conduct, he was highly esteemed and respected, and, indeed, his hostility to any interference with disease, had procured him the honour of a public testimonial;—shortly

after the presentation of which, with several neat speeches, the cholera broke out in Beetlebury.

The truth is, that Mr. Blenkinsop's views on the subject of public health and popular institutions were supposed to be economical (though they were, in truth, desperately costly), and so pleased some of the ratepayers. Besides, he withstood ameliorations, and defended nuisances and abuses with all the heartiness of an actual philanthropist. Moreover, he was a jovial fellow,—a boon companion; and his love of antiquity leant particularly towards old ale and old port wine. Of both of these beverages he had been partaking rather largely at a visitation-dinner, where, after the retirement of the bishop and his clergy, festivities were kept up till late, under the presidency of the deputy-registrar. One of the last to quit the Crown and Mitre was Mr. Blenkinsop.

He lived in a remote part of the town, whither, as he did not walk exactly in a right line, it may be allowable, perhaps, to say that he bent his course. Many of the dwellers in Beetlebury High Street, awakened at half-past twelve on that night, by somebody passing below, singing, not very distinctly,

‘With a jolly full bottle let each man be armed,’

were indebted, little as they may have suspected it, to Alderman Blenkinsop, for their serenade.

In his homeward way stood the Market Cross; a fine mediæval structure, supported on a series of circular steps by a groined arch, which served as a canopy to the stone figure of an ancient burgess. This was the effigies of Wynkyn de Vokes, once Mayor of Beetlebury, and a great benefactor to the town; in which he had founded almshouses and a grammar school, A.D. 1440. The post was formerly occupied by St. Wulfstan; but De Vokes had been removed from the Town Hall in Cromwell's time, and promoted to the vacant pedestal, *vice* Wulfstan, demolished. Mr. Blenkinsop highly revered this work of art, and he now stopped to take a view of it by moonlight. In that doubtful glimmer, it seemed almost life-like. Mr. Blenkinsop had not much imagination, yet he could well nigh fancy he was looking upon the veritable Wynkyn, with his bonnet, beard, furred gown, and staff, and his great book under his arm. So vivid was this impression, that it impelled him to apostrophise the statue.

‘Fine old fellow!’ said Mr. Blenkinsop. ‘Rare old buck! We shall never look upon your like, again. Ah! the good old times—the jolly good old times! No times like the good old times—my ancient worthy. No such times as the good old times!’

‘And pray, Sir, what times do you call the good old times?’ in distinct and deliberate accents, answered—according to the positive affirmation of Mr. Blenkinsop, subsequently made before divers witnesses—the Statue.

Mr. Blenkinsop is sure that he was in the perfect possession of his senses. He is certain that he was not the dupe of ventriloquism, or any other illusion. The value of these convictions must be a question between him and the world, to whose perusal the facts of his tale, simply as stated by himself, are here submitted.

When first he heard the Statue speak, Mr. Blenkinsop says, he certainly experienced a kind of sudden shock, a momentary feeling of consternation. But this soon abated in a wonderful manner. The Statue’s voice was quite mild and gentle—not in the least grim—had no funereal twang in it, and was quite different from the tone a statue might be expected to take by anybody who had derived his notions on that subject from having heard the representative of the class in ‘Don Giovanni.’

‘Well; what times do you mean by the good old times?’ repeated the Statue, quite familiarly. The churchwarden was able to reply with some composure, that such a question coming from such a quarter had taken him a little by surprise.

‘Come, come, Mr. Blenkinsop,’ said the Statue, ‘don’t be astonished. ’Tis half-past twelve, and a moonlight night, as your favourite police, the sleepy and infirm old watchman, says. Don’t you know that we statues are apt to speak when spoken to, at these hours? Collect yourself. I will help you to answer my own question. Let us go back step by step; and allow me to lead you. To begin. By the good old times, do you mean the reign of George the Third?’

‘The last of them, Sir,’ replied Mr. Blenkinsop, very respectfully, ‘I am inclined to think, were seen by the people who lived in those days.’

‘I should hope so,’ the Statue replied. ‘Those the good old times? What! Mr. Blenkinsop, when men were hanged by dozens, almost weekly, for paltry thefts. When a nursing woman was dragged to the gallows with her child at her breast, for shop-lifting, to the value of a shilling. When you lost

your American colonies, and plunged into war with France, which, to say nothing of the useless bloodshed it cost, has left you saddled with the national debt. Surely you will not call these the good old times, will you, Mr. Blenkinsop?’

‘Not exactly, Sir; no: on reflection I don’t know that I can,’ answered Mr. Blenkinsop. He had now—it was such a civil, well-spoken statue—lost all sense of the preternatural horror of his situation, and scratched his head just as if he had been posed in argument by an ordinary mortal.

‘Well then,’ resumed the Statue, ‘my dear Sir, shall we take the two or three reigns preceding. What think you of the then existing state of prisons and prison discipline? Unfortunate debtors confined indiscriminately with felons, in the midst of filth, vice, and misery unspeakable. Criminals under sentence of death tippling in the condemned cell with the Ordinary for their pot companion. Flogging, a common punishment of women convicted of larceny. What say you of the times when London streets were absolutely dangerous, and the passenger ran the risk of being hustled and robbed even in the day-time? When not only Hounslow and Bagshot Heath, but the public roads swarmed with robbers, and a stage-coach was as frequently plundered as a hen-roost. When, indeed, “the road” was esteemed the legitimate resource of a gentleman in difficulties, and a highwayman was commonly called “Captain”—if not respected accordingly. When cock-fighting, bear-baiting, and bull-baiting were popular, nay, fashionable amusements. When the bulk of the landed gentry could barely read and write, and divided their time between fox-hunting and guzzling. When a duellist was a hero, and it was an honour to have “killed your man.” When a gentleman could hardly open his mouth without uttering a profane or filthy oath. When the country was continually in peril of civil war through a disputed succession; and two murderous insurrections, followed by more murderous executions, actually took place. This era of inhumanity, shamelessness, brigandage, brutality, and personal and political insecurity, what say you of it, Mr. Blenkinsop? Do you regard this wig and pigtail period as constituting the good old times, respected friend?’

‘There was Queen Anne’s golden reign, Sir,’ deferentially suggested Mr. Blenkinsop.

‘A golden reign!’ exclaimed the Statue. ‘A reign of favouritism and court trickery at home, and profitless war abroad. The time of Bolingbroke’s, and

Harley's, and Churchill's intrigues. The reign of Sarah, Duchess of Marlborough and of Mrs. Masham. A golden fiddlestick! I imagine you must go farther back yet for your good old times, Mr. Blenkinsop.'

'Well,' answered the churchwarden, 'I suppose I must, Sir, after what you say.'

'Take William the Third's rule,' pursued the Statue. 'War, war again; nothing but war. I don't think you'll particularly call these the good old times. Then what will you say to those of James the Second? Were they the good old times when Judge Jefferies sat on the bench? When Monmouth's rebellion was followed by the Bloody Assize—When the King tried to set himself above the law, and lost his crown in consequence—Does your worship fancy that these were the good old times?'

Mr. Blenkinsop admitted that he could not very well imagine that they were.

'Were Charles the Second's the good old times?' demanded the Statue. 'With a court full of riot and debauchery—a palace much less decent than any modern casino—whilst Scotch Covenanters were having their legs crushed in the "Boots," under the auspices and personal superintendence of His Royal Highness the Duke of York. The time of Titus Oates, Bedloe, and Dangerfield, and their sham-plots, with the hangings, drawings, and quarterings, on perjured evidence, that followed them. When Russell and Sidney were judicially murdered. The time of the Great Plague and Fire of London. The public money wasted by roguery and embezzlement, while sailors lay starving in the streets for want of their just pay; the Dutch about the same time burning our ships in the Medway. My friend, I think you will hardly call the scandalous monarchy of the "Merry Monarch" the good old times.'

'I feel the difficulty which you suggest, Sir,' owned Mr. Blenkinsop.

'Now, that a man of your loyalty,' pursued the Statue, 'should identify the good old times with Cromwell's Protectorate, is of course out of the question.'

'Decidedly, Sir!' exclaimed Mr. Blenkinsop. '*He* shall not have a statue, though you enjoy that honour,' bowing.

'And yet,' said the Statue, 'with all its faults, this era was perhaps no worse than any we have discussed yet. Never mind! It was a dreary, cant-

ridden one, and if you don't think those England's palmy days, neither do I. There's the previous reign then. During the first part of it, there was the king endeavouring to assert arbitrary power. During the latter, the Parliament were fighting against him in the open field. What ultimately became of him I need not say. At what stage of King Charles the First's career did the good old times exist, Mr. Alderman? I need barely mention the Star Chamber and poor Prynne; and I merely allude to the fate of Strafford and of Laud. On consideration, should you fix the good old times anywhere thereabouts?'

'I am afraid not, indeed, Sir,' Mr. Blenkinsop responded, tapping his forehead.

'What is your opinion of James the First's reign? Are you enamoured of the good old times of the Gunpowder Plot? or when Sir Walter Raleigh was beheaded? or when hundreds of poor miserable old women were burnt alive for witchcraft, and the royal wiseacre on the throne wrote as wise a book, in defence of the execrable superstition through which they suffered?'

Mr. Blenkinsop confessed himself obliged to give up the times of James the First.

'Now, then,' continued the Statue, 'we come to Elizabeth.'

'There I've got you!' interrupted Mr. Blenkinsop, exultingly. 'I beg your pardon, Sir,' he added, with a sense of the freedom he had taken; 'but everybody talks of the times of Good Queen Bess, you know!'

'Ha, ha!' laughed the Statue, not at all like Zamiel, or Don Guzman, or a paviour's rammer, but really with unaffected gaiety. 'Everybody sometimes says very foolish things. Suppose Everybody's lot had been cast under Elizabeth! How would Everybody have relished being subject to the jurisdiction of the Ecclesiastical Commission, with its power of imprisonment, rack, and torture? How would Everybody have liked to see his Roman Catholic and Dissenting fellow-subjects, butchered, fined, and imprisoned for their opinions; and charitable ladies butchered, too, for giving them shelter in the sweet compassion of their hearts? What would Everybody have thought of the murder of Mary Queen of Scots? Would Everybody, would Anybody, would *you*, wish to have lived in these days, whose emblems are cropped ears, pillory, stocks, thumb-screws, gibbet, axe, chopping-block, and Scavenger's daughter? Will you take your stand upon this stage of History for the good old times, Mr. Blenkinsop?'

‘I should rather prefer firmer and safer ground, to be sure, upon the whole,’ answered the worshipper of antiquity, dubiously.

‘Well, now,’ said the Statue, ‘’tis getting late, and, unaccustomed as I am to conversational speaking, I must be brief. Were those the good old times when Sanguinary Mary roasted bishops, and lighted the fires of Smithfield? When Henry the Eighth, the British Bluebeard, cut his wives’ heads off, and burnt Catholic and Protestant at the same stake? When Richard the Third smothered his nephews in the Tower? When the Wars of the Roses deluged the land with blood? When Jack Cade marched upon London? When we were disgracefully driven out of France under Henry the Sixth, or, as disgracefully, went marauding there, under Henry the Fifth? Were the good old times those of Northumberland’s rebellion? Of Richard the Second’s assassination? Of the battles, burnings, massacres, cruel tormentings, and atrocities, which form the sum of the Plantagenet reigns? Of John’s declaring himself the Pope’s vassal, and performing dental operations on the Jews? Of the Forest Laws and Curfew under the Norman kings? At what point of this series of bloody and cruel annals will you place the times which you praise? Or do your good old times extend over all that period when somebody or other was constantly committing high treason, and there was a perpetual exhibition of heads on London Bridge and Temple Bar?’

It was allowed by Mr. Blenkinsop that either alternative presented considerable difficulty.

‘Was it in the good old times that Harold fell at Hastings, and William the Conqueror enslaved England? Were those blissful years the ages of monkery; of Odo and Dunstan, bearding monarchs and branding queens? Of Danish ravage and slaughter? Or were they those of the Saxon Heptarchy, and the worship of Thor and Odin? Of the advent of Hengist and Horsa? Of British subjugation by the Romans? Or, lastly, must we go back to the Ancient Britons, Druidism, and human sacrifices; and say that those were the real, unadulterated, genuine, good old times when the true-blue natives of this island went naked, painted with woad?’

‘Upon my word, Sir,’ said Mr. Blenkinsop, ‘after the observations that I have heard from you this night, I acknowledge that I *do* feel myself rather at a loss to assign a precise period to the times in question.’

‘Shall I do it for you?’ asked the Statue.

‘If you please, Sir. I should be very much obliged if you would,’ replied the bewildered Blenkinsop, greatly relieved.

‘The best times, Mr. Blenkinsop,’ said the Statue, ‘are the oldest. They are the wisest; for the older the world grows the more experience it acquires. It is older now than ever it was. The oldest and best times the world has yet seen are the present. These, so far as we have yet gone, are the genuine good old times, Sir.’

‘Indeed, Sir?’ ejaculated the astonished Alderman.

‘Yes, my good friend. These are the best times that we know of—bad as the best may be. But in proportion to their defects, they afford room for amendment. Mind that, Sir, in the future exercise of your municipal and political wisdom. Don’t continue to stand in the light which is gradually illuminating human darkness. The Future is the date of that happy period which your imagination has fixed in the Past. It will arrive when all shall do what is right; hence none shall suffer what is wrong. The true good old times are yet to come.’

‘Have you any idea when, Sir?’ Mr. Blenkinsop inquired, modestly.

‘That is a little beyond me,’ the Statue answered. ‘I cannot say how long it will take to convert the Blenkinsops. I devoutly wish you may live to see them. And with that, I wish you good night, Mr. Blenkinsop.’

‘Sir,’ returned Mr. Blenkinsop with a profound bow, ‘I have the honour to wish you the same.’

Mr. Blenkinsop returned home an altered man. This was soon manifest. In a few days he astonished the Corporation by proposing the appointment of an Officer of Health to preside over the sanitary affairs of Beetlebury. It had already transpired that he had consented to the introduction of lucifer-matches into his domestic establishment, in which, previously, he had insisted on sticking to the old tinder-box. Next, to the wonder of all Beetlebury, he was the first to propose a great new school, and to sign a requisition that a county penitentiary might be established for the reformation of juvenile offenders. The last account of him is that he has not only become a subscriber to the mechanics’ institute, but that he actually presided thereat, lately, on the occasion of a lecture on Geology.

The remarkable change which has occurred in Mr. Blenkinsop’s views and principles, he himself refers to his conversation with the Statue, as

above related. That narrative, however, his fellow townsmen receive with incredulous expressions, accompanied by gestures and grimaces of like import. They hint, that Mr. Blenkinsop had been thinking for himself a little, and only wanted a plausible excuse for recanting his errors. Most of his fellow aldermen believe him mad; not less on account of his new moral and political sentiments, so very different from their own, than of his Statue story. When it has been suggested to them that he has only had his spectacles cleaned, and has been looking about him, they shake their heads, and say that he had better have left his spectacles alone, and that a little knowledge is a dangerous thing, and a good deal of dirt quite the contrary. *Their* spectacles have never been cleaned, they say, and any one may see they don't want cleaning.

The truth seems to be, that Mr. Blenkinsop has found an altogether new pair of spectacles, which enable him to see in the right direction. Formerly, he could only look backwards; he now looks forwards to the grand object that all human eyes should have in view—progressive improvement.

BAPTISMAL RITUALS.

The subject of baptism having recently been pressed prominently upon public attention, it has been thought that a few curious particulars relating exclusively to the rite as anciently performed would be interesting.

In the earliest days of the Christian Church those who were admitted into it by baptism were necessarily not infants but adolescent or adult converts. These previously underwent a course of religious instruction, generally for two years. They were called during their pupilage, ‘catechumens,’^[2] a name afterwards transferred to all infants before baptism. When such candidates were judged worthy to be received within the pale of the Church, their names were inscribed at the beginning of Lent, on a list of the competent or ‘illuminated.’ On Easter or Pentecost eve they were baptised, by three solemn immersions, the first of the right side, the second of the left, and the third of the face. They were confirmed at the same time, often, in addition, receiving the sacrament. Sprinkling was only resorted to in cases of the sick and bedridden, who were called *clinics*,^[3] because they received the rite in bed. Baptism was at that early period accompanied by certain symbolical ceremonies long since disused. For example, milk and honey were given to the new Christian to mark his entrance into the land of promise, and as a sign of his spiritual infancy in being ‘born again;’ for milk and honey were the food of children when weaned. The three immersions were made in honour of the three persons of the Trinity; but the Arians having found in that ceremony an argument favouring the notion of distinction and plurality of natures in the Deity, Pope Gregory by a letter addressed to St. Leander of Seville, ordained that in Spain, the then stronghold of Arianism, only one immersion should be practised. This prescription was preserved and applied to the Church universal by the 6th canon of the Council of Toledo in 633. The triple immersion was, however, persisted in in Ireland to the 12th

century. Infants were thus baptised by their fathers, or indeed by any other person at hand, either in water or in milk; but the custom was abolished in 1172 by the Council of Cashel.

2. From the participle of a Greek verb, expressing the act of receiving rudimentary instruction.

3. From a Greek word signifying a bed, whence we derive the word *clinical*.

The African churches obliged those who were to be baptised on Easter eve to bathe on Good Friday, 'in order,' says P. Richard, in his *Analyse des Conciles*, 'to rid themselves of the impurities contracted during the observance of Lent before presenting themselves at the sacred font.' The bishops and priesthood of some of the Western churches, as at Milan, in Spain, and in Wales, washed the feet of the newly baptised, in imitation of the humiliation of the Redeemer. This was forbidden in 303 by the 48th canon of the Council of Elvira.

The Baptistry of the early church was one of the *exedræ*, or out-buildings, and consisted of a porch or ante-room, where adult converts made their confession of faith, and an inner room, where the actual baptism took place. Thus it continued till the sixth century, when baptisteries began to be taken into the church itself. The font was always of wood or stone. Indeed, we find the provincial council held in Scotland, in 1225, prescribing those materials as the only ones to be used. The Church in all ages discouraged private baptism. By the 55th canon of the same Council, the water which had been used to baptise a child out of church was to be thrown into the fire, or carried immediately to the parish baptistry, that it might be employed for no other purpose; in like manner, the vessel which, had held it was to be either burnt or consecrated for church use. For many centuries superstitious virtues were attributed to water which had been used for baptism. The blind bathed their eyes in it in the hope of obtaining their sight. It was said to 'drown the devil,' and to purify those who had recourse to it.

Baptism was by the early Church strictly forbidden during Lent. The Council of Toledo, held in 694, ordered by its 2nd canon, that, from the commencement of the fast to Good Friday, every baptistry should be closed, and sealed up with the seal of the bishop. The Council held at Reading, Berkshire, in 1279, prescribed that infants born the week previous to each Easter and Pentecost, should be baptised only at those festivals.

There is no restriction of this kind preserved by the Reformed Church; but we are admonished in the rubric that the most acceptable place and time for the ceremony is in church, no later than the first or second Sunday after birth. Sundays or holidays are suggested, because ‘the most number of people come together,’ to be edified thereby, and be witnesses of the admission of the child into the Church. Private baptism is objected to, except when need shall compel.

The practice of administering the Eucharist to the adult converts to Christianity after baptism, was in many churches improperly, during the fourth century, extended to infants. The priest dipped his fore-finger into the wine, and put it to the lips of the child to suck. This abuse of the Holy Sacrament did not survive the twelfth century. It was repeatedly forbidden by various Councils of the Church, and at length fell into desuetude.

Christening fees originated at a very early date. At first, bishops and those who had aided in the ceremony of baptism were entertained at a feast. This was afterwards commuted to an actual payment of money. Both were afterwards forbidden. The 48th canon of the Council of Elvira, held in 303, prohibits the leaving of money in the fonts, ‘that the ministers of the Church may not appear to sell that which it is their duty to give gratuitously.’ This rule was, however, as little observed in the Middle Ages as it has been since. Strype says, that in 1560 it was enjoined by the heads of the Church that, ‘to avoid contention, let the curate have the value of the “Chrisome,” not under 4*d.*, and above as they can agree, and as the state of the parents may require.’ The Chrisome was the white cloth placed by the minister upon the head of a child, which had been newly anointed with chrism, or hallowed ointment composed of oil and balm, always used after baptism. The gift of this cloth was usually made by the mother at the time of Churching. To show how enduring such customs are, even after the occasion for them has passed away, we need only quote a passage from Morant’s ‘Essex.’ ‘In Denton Church there has been a custom, time out of mind, at the churching of a woman, for her to give a white cambric handkerchief to the minister as an offering.’ The same custom is kept up in Kent, as may be seen in Lewis’s History of the Isle of Thanet.

The number of sponsors for each child was prescribed by the 4th Canon of the Council of York, in 1196, to be *no more* than three persons;—two males and one female for a boy, and two females and one male for a girl;—

a rule which is still preserved. A custom sprung up afterwards, which reversed the old state of things. By little and little, large presents were looked for from sponsors, not only to the child but to its mother; the result was that there grew to be a great difficulty in procuring persons to undertake so expensive an office. Indeed, it sometimes happened that fraudulent parents had a child baptised thrice, for the sake of the godfather's gifts. To remedy these evils, a Council held at l'Isle, in Provence, in 1288, ordered that thenceforth nothing was to be given to the baptised but a white robe. This prescription appears to have been kept for ages; Stow, in his Chronicle of King James's Reign, says, 'At this time, and for many ages, it was not the use and custom (as now it is) for godfathers and godmothers to give plate at the baptism of children, but only to give *christening shirts*, with little bands and cuffs, wrought either with silk or blue thread, the best of them edged with a small lace of silk and gold.' Cups and spoons have, however, stood their ground as favourite presents to babies on such occasions, ever since. 'Apostle spoons'—so called because a figure of one of the apostles was chased on the handle of each—were anciently given: opulent sponsors presenting the whole twelve. Those in middling circumstances gave four, and the poorer sort contented themselves with the gift of one, exhibiting the figure of any saint, in honour of whom the child received its name. Thus, in the books of the Stationers' Company, we find under 1560, 'a spoone the gift of Master Reginald Woolf, all gilte, with the picture of St. John.'

Shakspeare, in his Henry VIII., makes the king say, when Cranmer professes himself unworthy to be sponsor to the young princess:—

'Come, come, my lord, you'd spare your spoons.'

Again, in Davenant's Comedy of 'The Wits,' (1639):

'My pendants, cascanets, and rings;
My christ'ning caudle-cup and spoons,
Are dissolved into that lump.'

The coral and bells is an old invention for baptismal presents. Coral was anciently considered an amulet against fascination and evil spirits.

It is to be regretted that, at the present time, the grave responsibilities of the sponsors of children is too often considered to end with the presentation of some such gifts as we have enumerated. It is not to our praise that the ties

between sponsors and god-children, were much closer, and held more sacredly in times which we are pleased to call barbarous. God-children were placed not only in a state of pupilage with their sureties, but also in the position of relations. A sort of relationship was established even between the Godfathers and Godmothers; insomuch, that marriage between any such parties was forbidden under pain of severe punishment. This injunction, like many others, had it appears been sufficiently disobeyed to warrant a special canon (12th) of the Council of Compiègne, held so early as 757, which enforced the separation of all those sponsors and God-children of both sexes who had intermarried, and the Church refused the rites of marriage to the women so separated. A century after (815) the Council of Mayence not only reinforced these restrictions and penalties, but added others.

ARCTIC HEROES.

A FRAGMENT OF NAVAL HISTORY.

SCENE, *a stupendous region of icebergs and snow. The bare mast of a half-buried ship stands among the rifts and ridges. The figures of two men, covered closely with furs and skins, slowly emerge from beneath the winter-housing of the deck, and descend upon the snow by an upper ladder, and steps cut below in the frozen wall of snow. They advance.*

1st Man. We are out of hearing now. Give thy heart words.

[They walk on in silence some steps further, and then pause.

2nd Man. Here 'midst the sea's unfathomable ice,
Life-piercing cold, and the remorseless night
Which never ends, nor changes its dead face,
Save in the 'ghast smile of the hopeless moon,
Must slowly close our sum of wasted hours;
And with them all the enterprising dreams,
Efforts, endurance, and resolve, which make
The power and glory of us Englishmen.

1st Man. It may be so.

2nd Man. Oh, doubt not but it must.
Day after day, week crawling after week,
So slowly that they scarcely seem to move,
Nor we to know it, till our calendar
Shows us that months have lapsed away, and left
Our drifting time, while here our bodies lie
Like melancholy blots upon the snow.
Thus have we lived, and gradually seen,
By calculations which appear to mock
Our hearts with their false figures, that 'tis now
Three years since we were cut off from the world

By these impregnable walls of solid ocean!

1st Man. All this is true: the physical elements
We thought to conquer, are too strong for man.

2nd Man. We have felt the crush of battle side by side;
Seen our best friends, with victory in their eyes,
Suddenly smitten down, a mangled heap,
And thought our own turn might be next; yet never
Drooped we in spirit, or such horror felt
As in the voiceless tortures of this place,
Which freezes up the mind.

1st Man. Not yet.

2nd Man. I feel it.
Death, flying red-eyed from the cannon's mouth,
Were child's play to confront, compared with this.
Inch by inch famine in the silent frost—
The cold anatomies of our dear friends,
One by one carried in their rigid sheets
To lay beneath the snow—till he that's last,
Creeps to the lonely horror of his berth
Within the vacant ship, and while the bears
Grove round and round, thinks of his distant home—
Those dearest to him—glancing rapidly
Through his past life—then with a wailful sigh
And a brief prayer, his soul becomes a blank.

1st Man. This is despair—I'll hear no more of it.
We have provisions still.

2nd Man. And for how long?

1st Man. A flock of wild birds may pass over us,
And some our shots may reach.

2nd Man. And by this chance
Find food for one day more.

1st Man. Yes, and thank God;
For the next day may preservation come,
And rescue from old England.

2nd Man. All our fuel
Is nearly gone; and as the last log burns
And falls in ashes, so may we foresee
The frozen circle sitting round.

1st Man. Nay, nay—
Our boats, loose spars, our masts, and half our decks
Must serve us ere that pass. But, if indeed

Nothing avail, and no help penetrate
To this remote place, inaccessible
Perchance for years, except to some wild bird—
We came here knowing all this might befall,
And set our lives at stake. God's will be done.
I, too, have felt the horrors of our fate:
Jammed in a moving field of solid ice,
Borne onward day and night we knew not where,
Till the loud cracking sounds reverberating
Far distant, were soon followed by the rending
Of the vast pack, whose heaving blocks and wedges,
Like crags broke loose, all rose to our destruction
As by some ghastly instinct. Then the hand
Of winter smote the all-congealing air,
And with its freezing tempest piled on high
These massy fragments which environ us:—
Cathedrals many-spired, by lightning riven—
Sharp-angled chaos-heaps of palaced cities,
With splintered pyramids, and broken towers
That yawn for ever at the bursting moon
And her four pallid flame-spouts. Now, appalled
By the long roar o' the cloud-like avalanche—
Now, by the stealthy creeping of the glaciers
In silence tow'rds our frozen ships. So Death
Hath often whispered to me in the night;
And I have seen him in the Aurora-gleam
Smile as I rose and came upon the deck;
Or when the icicle's prismatic glance—
Bright, flashing,—and then, colourless, unmoved ice—
Emblem'd our passing life, and its cold end.
Oh, friend in many perils, fail not now!
Am I not, e'en as thou art, utterly sick
Of my own heavy heart, and loading clothes?—
A mind—that in its firmest hour hath fits
Of madness for some change, that shoot across
Its steadfastness, and scarce are trampled down.
Yet, friend, I will not let my spirit sink,
Nor shall mine eyes, e'en with snow-blindness veiled,
Man's great prerogative of inward sight
Forego, nor cease therein to speculate
On England's feeling for her countrymen;
Whereof relief will some day surely come.

2nd Man. I well believe it; but perhaps too late.

1st Man. Then, if too late, one noble task remains,
And one consoling thought. We, to the last,
With firmness, order, and considerate care,
Will act as though our death-beds were at home,
Grey heads with honour sinking to the tomb;
So future times shall record bear that we,

Imprisoned in these frozen horrors, held
Our sense of duty, both to man and God.

*The muffled beat of the ship's bell sounds for evening prayers.
The two men return: they ascend the steps in the snow—then the ladder—and disappear
beneath the snow-covered housing of the deck.*

A CORONER'S INQUEST.

If there appeared a paragraph in the newspapers, stating that her Majesty's representative, the Lord Chief Justice of the Queen's Bench, had held a solemn Court in the parlour of the 'Elephant and Tooth-pick,' the reader would rightly conceive that the Crown and dignity of our Sovereign Lady had suffered some derogation. Yet an equal abasement daily takes place without exciting especial wonder. The subordinates of the Lord Chief Justice of the Queen's Bench (who is, by an old law, the Premier Coroner of all England) habitually preside at houses of public entertainment; yet they are no less delegates of Royalty—as the name of their office implies^[4]—than the ermined dignitary himself, when surrounded with all the pomp and circumstance of the law's majesty at Westminster. This is quite characteristic of our thoroughly commercial nation. An action about a money-debt is tried in an imposing manner in a spacious edifice, and with only too great an excess of formality; but for an inquest into the sacrifice of a mere human life, 'the worst inn's worst room' is deemed good enough. In order rightly to determine whether Jones owes Smith five pounds ten, the Goddess of Justice is surrounded with the most imposing insignia, and worshipped in an appropriate temple: but when she is invoked to decide why a human spirit,

⁴. It is derived from *a coronâ* (from the crown), because the coroner, says Coke, "hath conusance in some pleas which are called *placita coronæ*."

'Unhousel'd, disappointed, unanel'd,
No reckoning made, is sent to its account
With all its imperfections on its head;'

she is thrust into the 'Hole in the Wall,' the 'Bag o' Nails,' or the parlour of the 'Two Spies.'

Desirous of having aural and ocular demonstration of the curious manner in which the office of Coroner is now fulfilled, we were attracted, a few weeks since, to the Old Drury Tavern, in Vinegar Yard, Drury Lane. Having made our way to a small parlour, we perceived the Majesty of England, as personated on this occasion, enveloped in an ordinary surtout, sitting at the head of a table, and surrounded by a knot of good-humoured faces, who might, if judged from mere appearances, have rallied round their president for some social purpose—only that the cigars and spirits and water had not yet come in. There was nothing official to be seen but a few pens, a sheet or two of paper, an inkstand, and a parish beadle.

When we entered, the Coroner was holding a friendly conversation with some of the jury, the beadle, and the gentlemen of the press, respecting the inferiority of the accommodation; and, considering the number of persons present, and the accessions expected from more jurymen, parochial officers, and witnesses, the subject was suggested naturally enough: for the private apartment of the landlord was of exceedingly moderate dimensions; and that had been appropriated as the temporary Court.

Here then, to a back parlour of the Old Drury Tavern, Vinegar Yard, Drury Lane, London, the Queen's representative was consigned—by no fault of his own, but from that of a system of which he is rather a victim than a promoter—to institute one of the most important inquiries which the law of England prescribes. A human being had been prematurely sent into eternity, and the coroner was called upon—amidst several implements of conviviality, the odour of gin and the smell of tobacco-smoke—'to inquire in this manner: that is, to wit, if they [the witnesses] know where the person was slain, whether it were in any house, field, bed, tavern, or company, and who were there; who are culpable, either of the act, or of the force; and who were present, either men or women, and of what age soever they be, if they can speak or have any discretion; and how many soever be found culpable they shall be taken and delivered to the sheriff, and shall be committed to the gaol.' So runs the clause of the act of parliament, still in force by which the coroner and jury were now assembled. It is the second statute of the fourth year of Edward I., and is the identical law which is discussed by the grave-diggers in Hamlet.

The pleasant colloquy about the size of the room ended in a resolution to adjourn the Court to the 'Two Spies,' in a neighbouring alley. Time appeared, throughout the proceedings, to be as valuable as space, and the rest of the jurors having dropped in, the coroner—with a bible supplied from the bar,—at once delivered the oath to the foreman. The other jurors were rapidly sworn in batches, upon the Old Drury Bible, under an abridged dispensation administered, if our memory be correct, by the beadle.

'Now, then, gentlemen,' said the coroner, 'we'll view the body.'

Not without alacrity the entire company left their confined quarters to breathe such air as is vouchsafed in Vinegar Yard. The subject of inquiry lay at a baker's shop, 'a few doors round the corner,'—to use the topographical formula of the parish functionary—and thither he ushered us. A few of the window shutters of the shop were up, but in all other respects there was as little to indicate a house of death as there was to show it to be a house of mourning. If the journeyman had not been standing at the end of the counter in his holiday coat, it would have seemed as if business was going on as usual. There was the same tempting display of tarts, the same heaps of biscuits, the same supply of loaves, the same ranges of flour in paper bags as is to be observed in ordinary bakers' shops on ordinary occasions. Yet the mistress of this particular baker's shop lay dead only a few paces within, and its master was in gaol on suspicion of having murdered her.

Through a parlour and a sort of passage with a bed and a sink in it, the jury were shown into a confined kitchen. Here, on a mahogany dining-table, lay the remains covered with a dirty sheet. To describe the spectacle which presented itself when the beadle, with business-like immobility turned down the covering, does not happily fall within our present object. It is, however, necessary to say that it presented evidences of continued ill-usage from blows and kicks, not to be beheld without strong indignation. Yet this was not all.

'The cause of death,' said the beadle—*his* mind was quite made up—'is on the back; it's covered with bruises: but I suppose you won't want to see that, gentlemen.'

By no means. Everybody had seen enough; for they were surrounded by whatever could increase distress and engender disgust. The apartment was so small, that the table left only room for the jurors to edge round it one by one; and it was hardly possible to do this, without actual contact with the head or feet of the corpse. A gridiron and other black utensils were hanging against the wall, and could only be escaped by the exercise on the part of the spectators of great ingenuity of motion. This and the bed-place (*bed-room* is no word for it) indicated squalid poverty; but the scene was changed in the parlour. There, appearances were at least kept up. It was filled with decent furniture—even elegancies; including a pianoforte and a couple of portraits.

These strange evidences of refinement only brought out the squalor, smallness, and unfitness for any part of a judicial inquiry of the inner apartments, into more glaring relief. Surely so important a function as that of a coroner and his jury should not be conducted amidst such a scene! Besides other obvious objections, the danger of keeping corpses in confined apartments, and in close neighbourhoods, was here strongly exemplified. The smell was so ‘close’ and insanitary, that the first man who entered the den where the body lay, caused the window to be opened. Two children, the offspring of the victim and the accused, lived in these apartments; and above stairs the house was crowded with lodgers, to all of whom any sort of infection would have proved the more disastrous from living next door, as it were, to Death. It is terrible to reflect that every decease happening among the myriads of the population a little lower in circumstances than this baker, deals around it its proportion of destruction to the living, from the same causes. True, that had it been impossible to retain the body where death occurred—as chances when several persons live in the same room—it would have been removed. But where.—The coroner and jury would have had to view it in the tap-room of a public-house.

There is another objection—all-powerful in the eyes of a lawyer. He recognises as a first necessity that the jurors should have no opportunity of communicating with witnesses, except when before the Court. But here the melancholy honours of the baker’s shop and parlour were performed by the two persons from whose evidence the cause of death was to be chiefly elicited;—the journeyman and a female relative of the deceased,

who were in the house when the last blows were dealt, and when the woman died. They received the fifteen jurymen who were presently to judge of their testimony; and there was nothing but the strong sense of propriety which actuated these gentlemen on the present occasion, to prevent the witnesses from telling their own story privately in their own way, to any one or half dozen of the inquest, and thus to give a premature bent to opinions, the materials for forming which, ought to be strictly reserved for the public Court. Many examples can be supplied in illustration of this evil. We select one:—Some years ago, an old woman in the most wretched part of Westminster, was found dead in her bed—strangled. When the Coroner and jury went to view the body, they were ushered by a young female—a relative—who lived with the deceased. She explained there and then all about the death. When the Court re-assembled, she was—chiefly, it was understood, in consequence of what had previously passed—examined as first and principal witness, and upon her evidence, the verdict arrived at, was ‘Temporary insanity.’ The case, however, subsequently passed through more formal judicial ordeals, and the result was, that the coroner’s prime witness was hanged for the *murder* of the old woman. We must have it distinctly understood that not the faintest shade of parallel exists between the two cases. We bring them together solely to illustrate the evils of a system.

On passing into the baker’s parlour, dumb witnesses presented themselves, which—properly or improperly—must have had their effect on the promoters of the inquiry. The piano indicated hours formerly spent, and thoughts once indulged, which, when imagined by minds fresh from the appalling reality in the squalid kitchen, must have excited new throes of indignation and pity. One portrait was that of the bruised and crushed corpse when living and young. Then she must have been comely; now no feature could be recognised as ever having been human. Then, she was cleanly and neatly dressed, and, if the pictured smile might be trusted, happy; now, she lay amidst dirt, the victim of long, long ill-usage and lingering misery, ended in premature death. The other, was a likeness of her husband. Had words of love ever passed between the originals of those painted effigies? Had they ever courted? It seemed that one of the jurors was inwardly asking some such question while gazing at the portraits, for he was visibly affected.

We all at length made our way to the 'Two Spies' in Whitehart Yard, Brydges Street. The accommodation afforded was a little more spacious than those of the Old Drury; but the delegated Majesty of the Crown had no dignity imparted to it from the coroner's figure being brought out in relief by a clothes-horse and table cloth which were, during the inquiry, placed behind him to serve as a fire-screen. Neither did the case of stuffed birds, the sampler of Moses in the bulrushes, the picture of the licensed victuallers' school, or the portraits of the rubicund host and of his 'good lady,' tend to impress the minds of jury, witnesses, or spectators, with that awe for the supremacy of the Law which a court of justice is expected to inspire.

The circumstances as detailed by the witnesses are already familiar to the readers of newspapers; but from the insecutive manner in which the evidence was produced, it is difficult to frame a coherent narrative. It all tended to prove that the husband had for several years exercised great harshness towards his wife. That boxing her ears and kicking her were among his 'habits.' On the Friday previous to her decease, the journeyman had been, as usual, 'bolted down' in the bake-house for the night, (such, he said, being the custom in the trade) and from eleven o'clock till three in the morning he heard a great noise overhead as of two persons quarrelling, and of one person dragging the other across the room. There were cries of distress from the deceased woman. Another witness—a second cousin of the wife—called on Saturday afternoon. She found the wife in a pitiable state from ill-usage and want of rest. Her left ear and all that part of the head was much bruised. There were cuts, and the hair was matted with congealed blood. The husband was told how much she was injured, but he did not appear to take any notice of it. A trait of the dread in which the woman lived of the man was here mentioned; she asked the witness to ask her husband to allow her to lie down. She dared not prefer so reasonable a request herself; although she had been up all the previous night being beaten. He refused. The cousin sat down to dinner with the wretched pair; only for the purpose of being between them to prevent further violence, for she had dined. She remained until half-past three o'clock, and during that interval the husband frequently boxed his wife's ears as hard as he could; and once kicked her with great force. Her usual remonstrance was, 'Man alive, don't touch me.' The visitor returned in the evening, and she, with the

journeyman, saw another brutal attack, some minutes after which the victim fell as if in a fit. She was assisted into an inner room, sank down and never rose again. She lay till the following Sunday morning in a state of insensibility, and no attempt had been made to procure surgical assistance. A practitioner at last was summoned, gave no hope, and the poor creature died on Monday morning. The post mortem examination, described by the surgeon, revealed the cause of death in the blows at the side of the head, which he said was like ‘beefsteaks when beaten by cooks.’ No trace of habitual drunkenness appeared. The deceased had been, in the course of the inquiry, charged with that.

A lawyer would have felt especially fidgetty, while these facts were being elicited. The questions were put in an undecided rambling manner, and were so interrupted by half-made remarks from the jurors and other parties in the room, that it was a wonder how the report of the proceedings, which appeared in the morning newspapers, could have been so cleverly cleared as it was of the chaff from which it was winnowed. One or two circumstances occurred during this time which tended to throw over the whole affair the air of an ill-played farce. At an interesting point of the evidence, the door was opened, and a scream from a female voice announced ‘Please sir, the beadle’s wanted!’ There were four gentlemen sitting on a horse-hair sofa close behind some of the jury, with whom more than once they entered into conversation, doubtless about the case in hand. The way in which the coroner took notice of this breach of every judisprudential rule, was extremely characteristic: he said, in effect, that there was, perhaps, no actual harm in it, but it *might* be objected to—the parties conversing might be relatives of the accused. In fact, he mildly insinuated that such unprivileged communications might warp the jurymen’s judgments—that’s all!

After the coroner had summed up, the jury returned a verdict of manslaughter against the husband. The Queen’s representative then retired, and so did the jury and the beadle; a little extra business was done at the bar of the ‘Two Spies,’ and, to use a reporter’s pet phrase, ‘the proceedings terminated.’

It is far from our desire, in describing this particular inquest, in any way to disparage—supposing anything we have said can be construed into disparagement—any person or persons concerned in it directly or

remotely. Our wish is to point out the exceeding looseness, informality, and difficulty of ensuring sound judgment, which the system occasions. Indeed we were told by a competent authority that the proceedings at the Old Drury and 'Two Spies' taverns, formed an orderly and superior specimen of their class.

There is a mischief of some gravity, which we have yet to notice. The essential check upon all judicial or private dereliction is publicity, and publicity gained through the press in *all* cases which require it; but the existing system gives the coroner the power of excluding reporters. He can, if he pleases, make a Star Chamber of his court, hold it in a private house, and conduct it in secret. Instances—though very rare ones—can be adduced of this having been actually done. Here opens a door to another abuse;—it is known that a certain few among newspaper hangers-on—persons only connected with the press by the precarious and slender tenure of 'a penny-a-line'—find it profitable to attend inquests—not for legitimate purposes—for their 'copy' is seldom inserted by editors—but to obtain money from relatives and parties interested in the deceased for what they are pleased to call 'suppressing' their reports. This generally happens in cases which from their having no public interest whatever would not, under any circumstances, be admitted into the crowded columns of the journals; for we can with confidence say that any case in which the public interests are likely to be staked, once before the editors of any London Journal, and supplied by a gentleman of their own establishment, no power on earth could suppress it. It has happened again occasionally that, from the suddenness with which the coroner is summoned, and the slovenly manner in which his office is performed, an inquest that ought to have been made public has wholly escaped the knowledge of newspaper conductors and their accredited reporters, and has thus passed over in silence.

Let us here put up another guard against misconception. No imputation *can* rest upon any accredited member of the press; the high state dignities which some men who have been reporters now so well support, are a guarantee against that. Neither do we wish to undervalue the important services sometimes performed by occasional or 'penny-a-line' reporters; among whom there are honourable and clever men. We only point out a

small body of exceptional characters who are no more than what we have described—‘hangers-on’ of the press.

We now proceed to suggest a remedy for the inherent vices of ‘Crownor’s quests.’

In the report of the Board of Health on intramural interments, upon which a bill now before Parliament is founded, it is proposed to erect in convenient parts of London eight reception-houses for the dead, previous to interment in the cemeteries to be established. This will remove the mortal remains from that immediate and fatal contact—fatal, morally as well as physically—which is compulsory among the poorer classes under the existing system of sepulture. It appears that of the deaths which take place in the metropolis, in upwards of 20,000 instances the corpse must be kept, during the interval between the death and the interment, in the same room in which the surviving members of the family live and sleep; while of the 8,000 deaths every year from epidemic diseases, by far the greater part happen under the circumstances just described.

If from these causes the necessity for dead-houses is so great when no inquest is necessary, how much stronger is it when the services of the coroner are requisite? The reason given for the peripatetic nature of the office, is the assumed necessity of the jury seeing the bodies on the spot and in the circumstances of death. But that such a necessity is unreal was proved on the inquest we have been detailing, by the fact of the remains having been lifted from the bed where life ceased, to a table, and having been opened by the surgeons. Surely, removal to a wholesome and convenient reception-house, would not disturb such appearances as may be presumed to form evidence. As it is, the only place among the poor in which medical men can perform the important duty of examination by *post mortem* dissection is a room crowded with inmates—or the tap-room of the nearest tavern.

To preserve, then, a degree of order, dignity, and solemnity equal at least to that which is maintained to try an action for debt, and to prevent the possibility of any ‘private’ dealings, we would strongly urge that a suitable Coroner’s Court-house be attached to each of the proposed reception-houses. A clause to this effect can be easily introduced into the new bill. With such accommodation the coroner could perform his office

in a manner worthy of a delegate of the Crown, and no such informalities as tend to intercept and taint the pure stream of Justice could continue to exist.

FRANCIS JEFFREY.

JEFFREY was a year younger than SCOTT, whom he outlived eighteen years, and with whose career his own had some points of resemblance. They came of the same middle-class stock, and had played together as lads in the High School 'yard' before they met as advocates in the Court of Session. The fathers of both were connected with that Court; and from childhood, both were devoted to the law. But Scott's boyish infirmity imprisoned him in Edinburgh, while Jeffrey was let loose to Glasgow University, and afterwards passed up to Queen's College, Oxford. The boys, thus separated, had no remembrance of having previously met, when they saw each other at the Speculative Society in 1791.

The Oxford of that day suited Jeffrey ill. It suited few people well who cared for anything but cards and claret. Southey, who came just after him, tells us that the Greek he took there he left there, nor ever passed such unprofitable months; and Lord Malmesbury, who had been there but a little time before him, wonders how it was that so many men should make their way in the world creditably, after leaving a place that taught nothing but idleness and drunkenness. But Jeffrey was not long exposed to its temptations. He left after the brief residence of a single term; and what in after life he remembered most vividly in connection with it, seems to have been the twelve days' hard travelling between Edinburgh and London which preceded his entrance at Queen's. Some seventy years before, another Scotch lad, on his way to become yet more famous in literature and law, had taken nearly as many weeks to perform the same journey; but, between the schooldays of Mansfield and of Jeffrey, the world had not been resting.

It was enacting its greatest modern incident, the first French Revolution, when the young Scotch student returned to Edinburgh and changed his

College gown for that of the advocate. Scott had the start of him in the Court of Session by two years, and had become rather active and distinguished in the Speculative Society before Jeffrey joined it. When the latter, then a lad of nineteen, was introduced, (one evening in 1791), he observed a heavy-looking young man officiating as secretary, who sat solemnly at the bottom of the table in a huge woollen night-cap, and who, before the business of the night began, rose from his chair, and, with imperturbable gravity seated on as much of his face as was discernible from the wrappings of the 'portentous machine' that enveloped it, apologised for having left home with a bad toothache. This was his quondam schoolfellow Scott. Perhaps Jeffrey was pleased with the mingled enthusiasm for the speculative, and regard for the practical, implied in the woollen night-cap; or perhaps he was interested by the Essay on Ballads which the hero of the night-cap read in the course of the evening: but before he left the meeting he sought an introduction to Mr. Walter Scott, and they were very intimate for many years afterwards.

The Speculative Society dealt with the usual subjects of elocution and debate prevalent in similar places then and since; such as, whether there ought to be an Established Religion, and whether the Execution of Charles I. was justifiable, and if Ossian's poems were authentic? It was not a fraternity of speculators by any means of an alarming or dangerous sort. John Allen and his friends, at this very time, were spouting forth active sympathy for French Republicanism at Fortune's Tavern, under immediate and watchful superintendence of the Police; James Macintosh was parading the streets with Horne Tooke's colours in his hat; James Montgomery was expiating in York Jail his exulting ballad on the Fall of the Bastille; and Southey and Coleridge, in despair of old England, had completed the arrangements of their youthful colony for a community of property, and proscription of everything selfish, on the banks of the Susquehana;—but the Speculative orators rarely probed the sores of the body politic deeper than an inquiry into the practical advantages of belief in a future state? and whether it was for the interest of Britain to maintain the balance of Europe? or if knowledge could be too much disseminated among the lower ranks of the people?

In short, nothing of the extravagance of the time, on either side, is associable with the outset of Jeffrey's career. As little does he seem to

have been influenced, on the one hand, by the democratic foray of some two hundred convention delegates into Edinburgh in 1792, as, on the other, by the prominence of his father's name to a protest of frantic high-tory defiance; and he was justified not many years since in referring with pride to the fact that, at the opening of his public life, his view of the character of the first French revolution, and of its probable influence on other countries, had been such as to require little modification during the whole of his subsequent career. The precision and accuracy of his judgment had begun to show itself thus early. At the crude young Jacobins, so soon to ripen into Quarterly Reviewers, who were just now coquetting with Mary Woolstonecraft, or making love to the ghost of Madame Roland, or branding as worthy of the bowstring the tyrannical enormities of Mr. Pitt, he could afford to laugh from the first. From the very first he had the strongest liberal tendencies, but restrained them so wisely that he could cultivate them well.

He joined the band of youths who then sat at the feet of Dugald Stewart, and whose first incentive to distinction in the more difficult paths of knowledge, as well as their almost universal adoption of the liberal school of politics, are in some degree attributable to the teaching of that distinguished man. Among them were Brougham and Horner, who had played together from boyhood in Edinburgh streets, had joined the Speculative on the same evening six years after Jeffrey (who in Brougham soon found a sharp opponent on colonial and other matters), and were still fast friends. Jeffrey's father, raised to a deputy clerk of session, now lived on a third or fourth flat in Buchanan's Court in the Lawn Market, where the worthy old gentleman kept two women servants and a man at livery; but where the furniture does not seem to have been of the soundest. This fact his son used to illustrate by an anecdote of the old gentleman eagerly setting-to at a favourite dinner one day, with the two corners of the table cloth tied round his neck to protect his immense professional frills, when the leg of his chair gave way, and he tumbled back on the floor with all the dishes, sauces, and viands a-top of him. Father and son lived here together, till the latter took for his first wife the daughter of the Professor of Hebrew in the University of St. Andrew, and moved to an upper story in another part of town. He had been called to the bar in 1794, and was married eight years afterward. He had not meanwhile obtained much practice, and the elevation implied in removal

to an upper flat is not of the kind that a young Benedict covets. But distinction of another kind was at length at hand.

One day early in 1802, 'in the eighth or ninth story or flat in Buccleugh Place, the elevated residence of the then Mr. Jeffrey,' Mr. Jeffrey had received a visit from Horner and Sydney Smith, when Sydney, at this time a young English curate temporarily resident in Edinburgh, preaching, teaching, and joking with a flow of wit, humanity, and sense that fascinated everybody, started the notion of the Edinburgh Review. The two Scotchmen at once voted the Englishman its editor, and the notion was communicated to John Archibald Murray (Lord Advocate after Jeffrey, long years afterward), John Allen (then lecturing on medical subjects at the University, but who went abroad before he could render any essential service), and Alexander Hamilton (afterwards Sanscrit professor at Haileybury). This was the first council; but it was extended, after a few days, till the two Thomsons (John and Thomas, the physician and the advocate), Thomas Brown (who succeeded to Dugald Stewart's chair), and Henry Brougham, were admitted to the deliberations. Horner's quondam playfellow was an ally too potent to be obtained without trouble; and, even thus early, had not a few characteristics in common with the Roman statesman and orator whom it was his greatest ambition in after life to resemble, and of whom Shakspeare has told us that he never followed anything that other men began.

'You remember how cheerfully Brougham approved of our plan at first,' wrote Jeffrey to Horner, in April, in the thick of anxious preparations for the start, 'and agreed to give us an article or two without hesitation. Three or four days ago I proposed two or three books that I thought would suit him; when he answered, with perfect good humour, that he had changed his view of our plan a little, and rather thought now that he should decline to have any connection with it.' This little coquetry was nevertheless overcome; and before the next six months were over, Brougham had become an efficient and zealous member of the band.

It is curious to see how the project hung fire at first. Jeffrey had nearly finished four articles, Horner had partly written four, and more than half the number was printed; and yet well nigh the other half had still to be written. The memorable fasciculus at last appeared in November, after a somewhat tedious gestation of nearly ten months; having been subject to

what Jeffrey calls so 'miserable a state of backwardness' and so many 'symptoms of despondency,' that Constable had to delay the publication some weeks beyond the day first fixed. Yet as early as April had Sydney Smith completed more than half of what he contributed, while nobody else had put pen to paper; and shortly after the number appeared he was probably not sorry to be summoned, with his easy pen and his cheerful wit, to London, and to abandon the cares of editorship to Jeffrey.

No other choice could have been made. That first number settled the point. It is easy to discover that Jeffrey's estimation in Edinburgh had not, up to this time, been in any just proportion to his powers; and that, even with those who knew him best, his playful and sportive fancy sparkled too much to the surface of his talk to let them see the grave deep currents that ran underneath. Every one now read with surprise the articles attributed to him. Sydney had yielded him the place of honour, and he had vindicated his right to it. He had thrown out a new and forcible style of criticism, with a fearless, unmisgiving, and unhesitating courage. Objectors might doubt or cavil at the opinions expressed; but the various and comprehensive knowledge, the subtle argumentative genius, the brilliant and definite expression, there was no disputing or denying. A fresh and startling power was about to make itself felt in literature.

'Jeffrey,' said his most generous fellow labourer, a few days after the Review appeared, 'is the person who will derive most honour from this publication, as his articles in this number are generally known, and are incomparably the best; I have received the greater pleasure from this circumstance, because the genius of that little man has remained almost unknown to all but his most intimate acquaintances. His manner is not at first pleasing; what is worse, it is of that cast which almost irresistibly impresses upon strangers the idea of levity and superficial talents. Yet there is not any man, whose real character is so much the reverse; he has, indeed, a very sportive and playful fancy, but it is accompanied with an extensive and varied information, with a readiness of apprehension almost intuitive, with judicious and calm discernment, with a profound and penetrating understanding.' This confident passage from a private journal of the 20th November, 1802, may stand as a remarkable monument of the prescience of Francis Horner.

Yet it was also the opinion of this candid and sagacious man that he and his fellows had not gained much character by that first number of the Review. As a set-off to the talents exhibited, he spoke of the severity—of what, in some of the papers, might be called the scurrility—as having given general dissatisfaction; and he predicted that they would have to soften their tone, and be more indulgent to folly and bad taste. Perhaps it is hardly thus that the objection should have been expressed. It is now, after the lapse of nearly half a century, admitted on all hands that the tone adopted by these young Edinburgh reviewers was in some respects extremely indiscreet; and that it was not simply folly and bad taste, but originality and genius, that had the right to more indulgence at their hands. When Lord Jeffrey lately collected Mr. Jeffrey's critical articles, he silently dropped those very specimens of his power which by their boldness of view, severity of remark, and vivacity of expression, would still as of old have attracted the greatest notice; and preferred to connect with his name, in the regard of such as might hereafter take interest in his writings, only those papers which, by enforcing what appeared to him just principles and useful opinions, he hoped might have a tendency to make men happier and better. Somebody said by way of compliment of the early days of the Scotch Review, that it made reviewing more respectable than authorship; and the remark, though essentially the reverse of a compliment, exhibits with tolerable accuracy the general design of the work at its outset. Its ardent young reviewers took a somewhat too ambitious stand above the literature they criticised. 'To all of us,' Horner ingenuously confessed, 'it is only matter of temporary amusement and subordinate occupation.'

Something of the same notion was in Scott's thoughts when, smarting from a severe but not unjust or ungenerous review of *Marmion*, he said that Jeffrey loved to see imagination best when it is bitted and managed, and ridden upon the *grand pas*. He did not make sufficient allowance for starts and sallies and bounds, when Pegasus was beautiful to behold, though sometimes perilous to his rider. He would have had control of horse as well as rider, Scott complained, and made himself master of the ménage to both. But on the other hand this was often very possible; and nothing could then be conceived more charming than the earnest, playful, delightful way in which his comments adorned and enriched the poets he admired. Hogarth is not happier in Charles Lamb's company, than is the

homely vigour and genius of Crabbe under Jeffrey's friendly leading; he returned fancy for fancy to Moore's exuberance, and sparkled with a wit as keen; he 'tamed his wild heart' to the loving thoughtfulness of Rogers, his scholarly enthusiasm, his pure and vivid pictures; with the fiery energy and passionate exuberance of Byron, his bright courageous spirit broke into earnest sympathy; for the clear and stirring strains of Campbell he had an ever lively and liberal response; and Scott, in the midst of many temptations to the exercise of severity, never ceased to awaken the romance and generosity of his nature.

His own idea of the more grave critical claims put forth by him in his early days, found expression in later life. He had constantly endeavoured, he said, to combine ethical precepts with literary criticism. He had earnestly sought to impress his readers with a sense, both of the close connection between sound intellectual attainments, and the higher elements of duty and enjoyment; and of the just and ultimate subordination of the former to the latter. Nor without good reason did he take this praise to himself. The taste which Dugald Stewart had implanted in him, governed him more than any other at the outset of his career; and may often have contributed not a little, though quite unconsciously, to lift the aspiring young metaphysician somewhat too ambitiously above the level of the luckless author summoned to his judgment seat. Before the third year of the review had opened, he had broken a spear in the lists of metaphysical philosophy even with his old tutor, and with Jeremy Bentham, both in the maturity of their fame; he had assailed, with equal gallantry, the opposite errors of Priestley and Reid; and, not many years later, he invited his friend Alison to a friendly contest, from which the fancies of that amiable man came out dulled by a superior brightness, by more lively, varied, and animated conceptions of beauty, and by a style which recommended a more than Scotch soberness of doctrine with a more than French vivacity of expression.

For it is to be said of Jeffrey, that when he opposed himself to enthusiasm, he did so in the spirit of an enthusiast; and that this had a tendency to correct such critical mistakes as he may occasionally have committed. And as of him, so of his Review. In professing to go deeply into the *principles* on which its judgments were to be rested, as well as to take large and original views of all the important questions to which those

works might relate,—it substantially succeeded, as Jeffrey presumed to think it had done, in familiarising the public mind with higher speculations, and sounder and larger views of the great objects of human pursuit; as well as in permanently raising the standard, and increasing the influence, of all such occasional writings far beyond the limits of Great Britain.

Nor let it be forgotten that the system on which Jeffrey established relations between his writers and publishers has been of the highest value as a precedent in such matters, and has protected the independence and dignity of a later race of reviewers. He would never receive an unpaid-for contribution. He declined to make it the interest of the proprietors to prefer a certain class of contributors. The payment was ten guineas a sheet at first, and rose gradually to double that sum, with increase on special occasions; and even when rank or other circumstances made remuneration a matter of perfect indifference, Jeffrey insisted that it should nevertheless be received. The Czar Peter, when working in the trenches, he was wont to say, received pay as a common soldier. Another principle which he rigidly carried out, was that of a thorough independence of publishing interests. The Edinburgh Review was never made in any manner tributary to particular bookselling schemes. It assailed or supported with equal vehemence or heartiness the productions of Albemarle-street and Paternoster-row. ‘I never asked such a thing of him but once,’ said the late Mr. Constable, describing an attempt to obtain a favourable notice from his obdurate Editor, ‘and I assure you the result was no encouragement to repeat such petitions.’ The book was Scott’s edition of Swift; and the result one of the bitterest attacks on the popularity of Swift, in one of Jeffrey’s most masterly criticisms.

He was the better able thus to carry his point, because against more potent influences he had already taken a decisive stand. It was not till six years after the Review was started that Scott remonstrated with Jeffrey on the virulence of its party politics. But much earlier even than this, the principal proprietors had made the same complaint; had pushed their objections to the contemplation of Jeffrey’s surrender of the editorship; and had opened negotiations with writers known to be bitterly opposed to him. To his honour, Southey declined these overtures, and advised a compromise of the dispute. Some of the leading Whigs themselves were

discontented, and Horner had appealed to him from the library of Holland House. Nevertheless, Jeffrey stood firm. He carried the day against Paternoster-row, and unassailably established the all-important principle of a perfect independence of his publishers' control. He stood as resolute against his friend Scott; protesting that on one leg, and the weakest, the Review could not and should not stand, for that its *right leg* he knew to be politics. To Horner he replied by carrying the war into the Holland House country with inimitable spirit and cogency. 'Do, for Heaven's sake, let your Whigs do something popular and effective this session. Don't you see the nation is now divided into two, and only two parties; and that *between* these stand the Whigs, utterly inefficient, and incapable of ever becoming efficient, if they will still maintain themselves at an equal distance from both. You must lay aside a great part of your aristocratic feelings, and side with the most respectable and sane of the democrats.'

The vigorous wisdom of the advice was amply proved by subsequent events, and its courage nobody will doubt who knows anything of what Scotland was at the time. In office, if not in intellect, the Tories were supreme. A single one of the Dundases named the sixteen Scots peers, and forty-three of the Scots commoners; nor was it an impossible farce, that the sheriff of a county should be the only freeholder present at the election of a member to represent it in Parliament, should as freeholder vote himself chairman, should as chairman receive the oaths and the writ from himself as sheriff, should as chairman and sheriff sign them, should propose himself as candidate, declare himself elected, dictate and sign the minutes of election, make the necessary indenture between the various parties represented solely by himself, transmit it to the Crown-office, and take his seat by the same night's mail to vote with Mr. Addington! We must recollect such things, when we would really understand the services of such men as Jeffrey. We must remember the evil and injustice he so strenuously laboured to remove, and the cost at which his labour was given. We must bear in mind that he had to face day by day, in the exercise of his profession, the very men most interested in the abuses actively assailed, and keenly resolved as far as possible to disturb and discredit their assailant. 'Oh, Mr. Smith,' said Lord Stowell to Sydney, 'you would have been a much richer man if you had come over to us!' This was in effect the sort of thing said to Jeffrey daily in the Court of Session, and disregarded with generous scorn. What it is to an advocate to

be on the deaf side of ‘the ear of the Court,’ none but an advocate can know; and this, with Jeffrey, was the twenty-five years’ penalty imposed upon him for desiring to see the Catholics emancipated, the consciences of dissenters relieved, the barbarism of jurisprudence mitigated, and the trade in human souls abolished.

The Scotch Tories died hard. Worst in fair fight they resorted to foul; and among the publications avowedly established for personal slander of their adversaries, a preeminence so infamous was obtained by the Beacon, that it disgraced the cause irretrievably. Against this malignant libeller Jeffrey rose in the Court of Session again and again, and the result of its last prosecution showed the power of the party represented by it thoroughly broken. The successful advocate, at length triumphant even in that Court over the memory of his talents and virtues elsewhere, had now forced himself into the front rank of his profession; and they who listened to his advocacy found it even more marvellous than his criticism, for power, versatility, and variety. Such rapidity yet precision of thought, such volubility yet clearness of utterance, left all competitors behind. Hardly any subject could be so indifferent or uninviting, that this teeming and fertile intellect did not surround it with a thousand graces of allusion, illustration, and fanciful expression. He might have suggested Butler’s hero,

‘—who could not open
His mouth but out there flew a trope,’

with the difference that each trope flew to its proper mark, each fancy found its place in the dazzling profusion, and he could at all times, with a charming and instinctive ease, put the nicest restraints and checks on his glowing velocity of declamation. A worthy Glasgow baillie, smarting under an adverse verdict obtained by these facilities of speech, could find nothing so bitter to advance against the speaker as a calculation made with the help of Johnson’s Dictionary, to the effect that Mr. Jeffrey, in the course of a few hours, had spoken the whole English language twice over!

But the Glasgow baillie made little impression on his fellow citizens; and from Glasgow came the first public tribute to Jeffrey’s now achieved position, and legal as well as literary fame. He was elected Lord Rector of

the University in 1821 and 1822. Some seven or eight years previously he had married the accomplished lady who survives him, a grandniece of the celebrated Wilkes; and had purchased the lease of the villa near Edinburgh which he occupied to the time of his death, and whose romantic woods and grounds will long be associated with his name. At each step of his career a new distinction now awaited him, and with every new occasion his unflagging energies seemed to rise and expand. He never wrote with such masterly success for his Review as when his whole time appeared to be occupied with criminal prosecutions, with contested elections, with journeyings from place to place, with examinings and cross-examinings, with speeches, addresses, exhortations, denunciations. In all conditions and on all occasions, a very atmosphere of activity was around him. Even as he sat, apparently still, waiting to address a jury or amaze a witness, it made a slow man nervous to look at him. Such a flush of energy vibrated through that delicate frame, such rapid and never ceasing thought played on those thin lips, such restless flashes of light broke from those kindling eyes. You continued to look at him, till his very silence acted as a spell; and it ceased to be difficult to associate with his small but well-knit figure even the giant-like labours and exertions of this part of his astonishing career.

At length, in 1829, he was elected Dean of the Faculty of Advocates; and thinking it unbecoming that the official head of a great law corporation should continue the editing of a party organ, he surrendered the management of the Edinburgh Review. In the year following, he took office with the Whigs as Lord Advocate, and replaced Sir James Scarlett in Lord Fitzwilliam's borough of Malton. In the next memorable year he contested his native city against a Dundas; not succeeding in his election, but dealing the last heavy blow to his opponent's sinking dynasty. Subsequently he took his seat as Member for Perth, introduced and carried the Scotch Reform bill, and in the December of 1832 was declared member for Edinburgh. He had some great sorrows at this time to check and alloy his triumphs. Probably no man had gone through a life of eager conflict and active antagonism with a heart so sensitive to the gentler emotions, and the deaths of Macintosh and Scott affected him deeply. He had had occasion, during the illness of the latter, to allude to him in the House of Commons; and he did this with so much beauty and delicacy, with such manly admiration of the genius and modest deference to the

opinions of his great Tory friend, that Sir Robert Peel made a journey across the floor of the house to thank him cordially for it.

The House of Commons nevertheless was not his natural element, and when, in 1834, a vacancy in the Court of Session invited him to his due promotion, he gladly accepted the dignified and honourable office so nobly earned by his labours and services. He was in his sixty-second year at the time of his appointment, and he continued for nearly sixteen years the chief ornament of the Court in which he sat. In former days the judgment-seats in Scotland had not been unused to the graces of literature: but in Jeffrey these were combined with an acute and profound knowledge of law less usual in that connection; and also with such a charm of demeanour, such a play of fancy and wit sobered to the kindest courtesies, such clear sagacity, perfect freedom from bias, consideration for all differences of opinion; and integrity, independence, and broad comprehensiveness of view in maintaining his own; that there has never been but one feeling as to his judicial career. Universal veneration and respect attended it. The speculative studies of his youth had done much to soften all the asperities of his varied and vigorous life, and now, at its close, they gave to his judgments a large reflectiveness of tone, a moral beauty of feeling, and a philosophy of charity and good taste, which have left to his successors in that Court of Session no nobler models for imitation and example. Impatience of dulness *would* break from him, now and then; and the still busy activity of his mind might be seen as he rose often suddenly from his seat, and paced up and down before it; but in his charges or decisions nothing of this feeling was perceptible, except that lightness and grace of expression in which his youth seemed to linger to the last, and a quick sensibility to emotion and enjoyment which half concealed the ravages of time.

If such was the public estimation of this great and amiable man, to the very termination of his useful life, what language should describe the charm of his influence in his private and domestic circle? The affectionate pride with which every citizen of Edinburgh regarded him rose here to a kind of idolatry. For here the whole man was known—his kind heart, his open hand, his genial talk, his ready sympathy, his generous encouragement and assistance to all that needed it. The first passion of his life was its last, and never was the love of literature so bright within him

as at the brink of the grave. What dims and deadens the impressibility of most men, had rendered his not only more acute and fresh, but more tributary to calm satisfaction, and pure enjoyment. He did not live merely in the past, as age is wont to do, but drew delight from every present manifestation of worth or genius, from whatever quarter it addressed him. His vivid pleasure where his interest was awakened, his alacrity and eagerness of appreciation, the fervour of his encouragement and praise, have animated the hopes and relieved the toil alike of the successful and the unsuccessful, who cannot hope, through whatever chequered future may await them, to find a more generous critic, a more profound adviser, a more indulgent friend.

The present year opened upon Francis Jeffrey with all hopeful promise. He had mastered a severe illness, and resumed his duties with his accustomed cheerfulness; private circumstances had more than ordinarily interested him in his old Review; and the memory of past friends, giving yet greater strength to the affection that surrounded him, was busy at his heart. 'God bless you!' he wrote to Sydney Smith's widow on the night of the 18th of January; 'I am very old, and have many infirmities; but I am tenacious of old friendships, and find much of my present enjoyments in the recollections of the past.' He sat in Court the next day, and on the Monday and Tuesday of the following week, with his faculties and attention unimpaired. On the Wednesday he had a slight attack of bronchitis; on Friday, symptoms of danger appeared; and on Saturday he died, peacefully and without pain. Few men had completed with such consummate success the work appointed them in this world; few men had passed away to a better with more assured hopes of their reward. The recollection of his virtues sanctifies his fame; and his genius will never cease to awaken the gratitude, respect, and pride of his countrymen.

HAIL AND FAREWELL!

THE YOUNG JEW OF TUNIS.

People are glad to be assured that an interesting story is true. The following history was communicated to the writer by a friend, residing in the East, who had it from the French Consul himself. It reminds one of the Arabian Nights.

In the year 1836, a Jewish family residing in Algiers were plunged in the greatest distress by the death of the father. A son, two daughters, and a mother were by this calamity left almost destitute. After the funeral, the son, whose name was Ibrahim, sold what little property there was to realise and gave it to his mother and sisters; after which, commending them to the charity of a distant relative, he left Algiers and departed for Tunis, hoping that if he did not find his fortune, he would at least make a livelihood there.

He presented himself to the French Consul with his papers, and requested a license as a donkey-driver. This was granted, and Ibrahim entered the service of a man who let out asses, both for carrying water and for hire.

Ibrahim was extremely handsome and very graceful in his demeanour; but, being so poor, his clothes were too ragged for him to be employed on anything but drudgery that was out of sight. He used to be sent with water-skins to the meanest parts of the town.

One day, as he was driving his ass laden with water up a narrow street, he met a cavalcade of women riding (as usual in that country) upon donkeys covered with sumptuous housings. He drew on one side to allow them to pass by, but a string of camels coming up at the same instant, there ensued some confusion. The veil of one of the women became slightly deranged, and Ibrahim caught sight of a lovely countenance.

He contrived to ascertain who the lady was and where she lived. She was Rebecca, the only daughter of a wealthy Jew.

From this time, Ibrahim had but one thought; that of becoming rich enough to demand Rebecca in marriage. He had already saved up a few pieces of money; with these he bought himself better clothes, and he was now sometimes sent to conduct the donkeys hired out for riding.

It so chanced, that one of his first expeditions was to take Rebecca and her attendants to a mercer's shop. Either from accident or coquetry, Rebecca's veil became again deranged, and again Ibrahim beheld the heavenly face beneath it. Ibrahim's appearance, and his look of burning passionate love, did not displease the young Jewess. He frequently attended her on her excursions, and he was often permitted to see beneath the veil.

Ibrahim deprived himself almost of the necessities of life, and at length saved enough money to purchase an ass of his own. By degrees he was able to buy more, and became a master employing boys under him.

When he thought himself sufficiently well off in the world, he presented himself before the family of Rebecca, and demanded her in marriage; but they did not consider his prospects brilliant, and rejected his proposals with contempt. Rebecca, however, sent her old nurse to him (just as a lady in the 'Arabian Nights' might have sent a similar messenger) to let him know that the family contempt was not shared by her.

Ibrahim was more determined than ever to obtain her. He went to a magician, who bade him return to Algiers, and declared that if he accepted the *first* offer of any kind which he should receive after entering the city, he would become rich and obtain the desire of his heart.

Ibrahim sold his asses and departed for Algiers. He walked up and down the streets till nightfall, in expectation of the mysterious offer which had been foretold—but no one came.

He had, however, been observed by a rich widow, somewhat advanced in years, a Frenchwoman and the widow of an officer of engineers. She dispatched an attendant to discover who he was and where he lived, and the next day sent for him to her house. His graceful address fascinated her even more than his good looks, and she made him overtures of marriage:

offering at the same time to settle upon him a handsome portion of her wealth.

This was not precisely the mode in which Ibrahim had intended to make his fortune; but, he recollected the prediction of the magician, and accepted the proposal.

They were married, and for twelve months Ibrahim lived with his wife in great splendour and apparent happiness. At the end of that time he professed to be called to Tunis by indispensable business, which would require his presence for some time. His wife made no opposition, though she was sorry to lose him, and wished to accompany him; but that he prohibited, and departed alone: taking with him a good supply of money.

He again presented himself before the French Consul at Tunis, who was surprised at the change in his appearance. His vest of flowered silk, brocaded with gold, was girded round the waist by a Barbary sash of the richest silk; his ample trowsers of fine cloth were met by red morocco boots; a Cashmere shawl of the most radiant colours was twisted round his head; his beard, carefully trimmed, fell half-way down his breast; a jewelled dagger hung at his girdle; and an ample Bournooz worn over all, gave an additional grace to his appearance, while it served to conceal his rich attire, which far exceeded the license of the sad-coloured garments prescribed by law to the Jews.

He lost no time in repairing to the house of Rebecca. She was still unmarried, and again he made his proposals; this time it was with more success. He had all the appearance of a man of high consideration; and the riches which he half-negligently displayed, took their due effect. He had enjoyed a good character when he lived at Tunis before, and they took it for granted that he had done nothing to forfeit it. They asked no questions how his riches had been obtained, but gave him Rebecca in marriage.

At the end of six months, the French Consul received inquiries from Algiers about Ibrahim; his wife, it was said, had become alarmed at his prolonged absence.

The Consul sent for Ibrahim, and told him what he had heard. Ibrahim at first appeared disturbed and afterwards indignant. He denied in the

strongest terms that he had any other wife than Rebecca, but owned that the woman in question had fallen in love with him. He also denied that he had given her any sort of legal claim upon him. The French Consul was perplexed; Ibrahim's papers were all regular, he had always led an exemplary life in Tunis, he denied his marriage, and there was no proof of it.

Had Ibrahim retained the smallest presence of mind, no harm could have befallen him. In that land of polygamy, his two wives (even though one were European) would have caused little scandal. His domestic position was somewhat complicated but by no means desperate. On departing from the Consul's house, however, he would seem to have become possessed by a strange panic not to be explained by any rules of logic, and to have gone mad straightway. His one idea was that he was hurried on by destiny to—murder Rebecca!

This miserable wretch, possessed by the fixed idea of destroying Rebecca, made deliberate preparations for carrying it into effect. But with the strange fanaticism and superstition which formed a main part of his character, and which forms a part of many such characters in those countries, he determined to give her a chance for her life; for, he seems to have thought in some confused, wild, mad, vain way, that it might still be the will of Providence that she should live.

He concerted measures with the captain of a Greek vessel, whom he induced by heavy bribes to enter into his views. He gave it out that he was going to Algiers, to put an end to the ridiculous report which had been raised, and to destroy the claim which had been set up by his pretended wife.

He embarked with Rebecca, without any attendants, on board the Greek vessel, which was bound for Algiers. Rebecca was taken at once into the cabin, where her curiosity was excited by a strange-looking black box which stood at one end of it. The black box was high and square, and large enough to contain a person sitting upright. The lid was thrown back; and she saw that the box was lined with thick cotton cloth, and contained a small brass pitcher full of water and a loaf of bread. Whilst she was examining these things, Ibrahim and the Captain entered; they neither of them spoke one word; but, coming behind her, Ibrahim placed his hand

over her mouth, and muffling her head in her veil, lifted her into the box with the assistance of the captain, and shut down the lid, which they securely fastened. They then carried the box between them upon deck, and lowered it over the side of the vessel. The box had holes bored in the lid; it was very strong; and so built as to float like a boat.

The Greek vessel continued her course towards Algiers. Either the crew had really not noticed the strange proceedings of Ibrahim and the Captain, or (which is more probable) they were paid to be silent. It is certain that they did not attempt to interfere.

The next morning, as a French steamer, the Panama, was bearing towards Tunis, something like the hull of a small vessel was seen drifting about directly in their course. They picked it up, as it floated athwart the steamer's bow; and were horrified to hear feeble cries proceeding from the interior. Hastily breaking it open, they found the unhappy Rebecca nearly dead with fright and exhaustion. When she was sufficiently recovered to speak, she told the captain how she had come into that strange condition, and he made all speed on to Tunis.

The French Consul immediately dispatched a swift sailing steamer to Algiers with Rebecca and her nearest friends on board, bearing a dispatch to the governor, containing a hasty account of all these things. The steamer arrived first. When the Greek vessel entered the port, Ibrahim and the Captain were ordered to follow the officer on guard, and in a few moments Ibrahim stood face to face with his victim. To render the complication more complete, the French wife hearing that a steamer from Tunis had arrived with dispatches, went down to the governor's house to make inquiries after her husband.

At first, Ibrahim nearly fainted; but he soon regained his insane self, and boldly confessed his crime. Addressing himself to Rebecca, he said:

'I confided thee to the sea, for I thought it might be the will of Providence to save thee! If thou hadst died, it would have been Providence that decreed thy fate, but thou art saved, and I am destroyed.'

Both the wives wept bitterly. Their natural jealousy of each other was merged into the desire to save the fanatic from the consequence of his madness. Rebecca attempted to deny her former statement, and used great

intercession with her relatives to forego their vengeance. The Frenchwoman made interest with the authorities too, but it was all, happily, in vain. The friends of Rebecca were implacable and insisted on justice.

Ibrahim works now in the gallies at Toulon. The captain is under punishment also. The magician, it is to be feared, is practising his old trade.

This is, perhaps, as strange an instance as there is on record, of an audacious and besotted transference of every responsibility to Providence. As though Providence had left man to work out nothing for himself! It is probable that this selfish monomaniac made the same pretext to his mind for basely marrying the widow, whom he intended to desert. There is no kind of impiety so monstrous as this; and yet there is, perhaps, none encountered so frequently, in one phase or other, in many aspects of life.

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